

**UPDATED PHASE 1 ARCHAEOLOGICAL IMPACT ASSESSMENT (AIA) FOR THE
PROPOSED CONSTRUCTION OF THE WALMER HOUSING DEVELOPMENT ON ERF
11305, GQEBERHA, NELSON MANDELA BAY MUNICIPALITY (NMBM), EASTERN
CAPE PROVINCE.**

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NOTE: PREVIOUS STUDIES CONDUCTED DURING 2014

The initial heritage assessment for the proposed housing development on Erf11305 was undertaken in September 2014 as a Phase 1 Archaeological Impact Assessment (AIA) titled *Phase 1 Archaeological Impact Assessment (AIA) for the Proposed Walmer Gqeberha Low-Cost Housing Development on Erf 11305, Walmer, Port Elizabeth, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province*, prepared for SRK Consulting and compiled by Celeste Booth. This report constitutes an updated version of that assessment. A separate built-environment heritage assessment was conducted by Bryan Wintermeyer; however, the findings of the built-environment component fall outside the scope of this report and will not be discussed further.

A Notification of Intent to Develop (NID) for the current application was submitted to the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) by the recently appointed Environmental Assessment Practitioner (EAP) and their comment dated 23 July 2026 (see Appendix D for full comment) stipulated that:

- The archaeological and heritage impact assessments are outdated (2014 & 2015 respectively).
- ECPHRA does not accept reports older than five (5) years hence we request a *site walkdown* after ground clearance and a report there after.
- Historical maps & aerial photographs should be consulted for the impact assessments.

Historical maps and available aerial photographs were consulted to inform the archaeological and cultural heritage assessment. No additional site visit was undertaken for this update, as ECPHRA has stipulated that the site walk-down must only be conducted after ground clearance and submitted together with the post-clearance report.

The initial phase 1 archaeological impact assessment (Booth, C. 2014) was conducted as a requirement of the ECPHRA (Eastern Cape Provincial Heritage Authority) and the National Heritage Resources Act 25 of 1999, Section 38(1):

38. (1) Subject to the provisions of subsections (7), (8) and (9), any person who intends to undertake a development categorized as –

(a) the construction of a road, wall, power line, pipeline, canal or other similar form of linear development or barrier exceeding 300 m in length;

(b) the construction of a bridge or similar structure exceeding 50 m in length;

(c) any development or other activity which will change the character of the site –

(i) exceeding 5 000 m² in extent,

(d) the re-zoning of a site exceeding 10 000 m² in extent,

This updated report follows the minimum standard guidelines required by the South African Heritage Resources Agency (SAHRA) and the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) for compiling a full Phase 1 Archaeological Impact Assessment (AIA). The Eastern Cape Provincial Heritage Resources (ECPHRA) has been the competent authority in the Eastern Cape Province since 2012. All heritage reports must be uploaded to the South African Heritage Information System (SAHRIS) database and submitted to the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) for comment.

DECLARATION OF INDEPENDENCE

Ms Celeste Booth was appointed on a strictly professional basis to conduct the archaeological and cultural heritage assessment for the proposed construction of the Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province.

This section confirms a declaration of independence that archaeological heritage specialist, Ms Celeste Booth, does not have and will not have any vested interest (either business, financial, personal or other) in the proposed activity proceeding other than remuneration for work performed in terms of the Amendments to Environmental Impact Assessment Regulations, 2014 as amended.

Ms Celeste Booth further declares that she:

- will act as the independent Specialist in this application;
- will perform the work relating to the application in an objective manner, even if this results in views and findings that are not favourable to the applicant;
- will declare that there are no circumstances that may compromise her objectivity in performing such work;
- has expertise in conducting environmental impact assessments, including knowledge of the Act, regulations and any guidelines that have relevance to the proposed activity;
- will comply with the Act, regulations, and all other applicable legislation;
- will take into account, to the extent possible, the matters listed in regulation 8 of the regulations when preparing the application and any report relating to the application;
- has no, and will not engage in, conflicting interests in the undertaking of the activity;
- undertakes to disclose to the applicant and the competent authority all material information in her possession that reasonably has or may have the potential of influencing - any decision to be taken with respect to the application by the competent authority; and - the objectivity of any report, plan or document to be prepared by myself for submission to the competent authority;
- will ensure that information containing all relevant facts in respect of the application is distributed or made available to interested and affected parties and the public and that participation by interested and affected parties is facilitated in such a manner that all interested and affected parties will be provided with a reasonable opportunity to participate and to provide comments on documents that are produced to support the application;
- will ensure that the comments of all interested and affected parties are considered and recorded in reports that are submitted to the competent authority in respect of the application, provided that comments that are made by interested and affected parties in respect of a final report that will be submitted to the competent authority may be attached to the report without further amendment to the report;
- will keep a register of all interested and affected parties that participated in a public participation process; and
- will provide the competent authority with access to all information at her disposal regarding the application, whether such information is favourable to the applicant or not
- confirms that all the particulars furnished by the in this form are true and correct;
- will perform all other obligations as expected from an environmental assessment practitioner in terms of the Regulations; and
- realises that a false declaration is an offence and is punishable in terms of section 24F of the Act.



SUMMARY OF SPECIALIST EXPERTISE

Ms Celeste Booth (BSc Honours: Archaeology) is an archaeologist who has had seventeen (17) years of full-time experience in Cultural Resource Management in the Eastern Cape Province and sections of the Northern Cape and Western Cape Provinces. Ms Booth has conducted several Archaeological Desktop Studies and Phase 1 Archaeological Impact Assessments within the Eastern Cape Province and in the Karoo region across the Eastern Cape, Northern Cape, KwaZulu Natal, and Western Cape Provinces.

EXECUTIVE SUMMARY

Purpose of the Study

The purpose of the study was to update the assessment and report conducted and compiled for the 2014 phase 1 archaeological impact assessment (AIA) for the current application for the proposed construction of the Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province.

The initial survey was conducted to establish the range and importance of the exposed and *in situ* archaeological heritage material remains, sites and features; to establish the potential impact of the development; and to make recommendations to minimize possible damage to the archaeological heritage.

Brief Summary of Findings

The proposed area for the housing development is situated on the boundary of the generally accepted 5 km archaeologically sensitive coastal zone. However, no archaeological heritage remains or expected shell midden sites were observed within the proposed area for development. The ruins of a farmstead, dwelling, and associated infrastructure were documented on the property. The ruins of the buildings may be older than 60 years, however, modifications to the buildings may have been made over time.

Within the past few years, subsequent to the 2014 assessment, archaeological human remains were found exposed by a member of the public reported to the South African Police Service (SAPS) in Walmer. The burial was found along the north-western boundary of the proposed development area, adjacent to the suburb of Beaumont Estates. Upon inspection, the exposed burial was found within a deflation hollow containing marine shell and stone artefact scatters, confirming the archaeological nature of the remains and the broader heritage sensitivity of the locality.

The finding of the exposed archaeological human remains along the north-western boundary of the proposed development area is of high heritage significance. The burial, situated within an exposed deflation hollow containing marine shell and stone artefact scatters, confirms the presence of an archaeological context associated with precolonial occupation and mortuary practices in the Walmer coastal-dune landscape. The occurrence of human remains *in situ*, together with associated cultural material, elevates the heritage sensitivity of the locality and triggers the protective provisions of Section 35 and Section 36 of the National Heritage Resources Act (Act 25 of 1999). This finding demonstrates that the broader area could possibly retain intact archaeological deposits and burial-related features, and therefore requires careful management, controlled ground-disturbance procedures, and post-clearance monitoring in accordance with ECPHRA's directives.

Recommendations and Mitigation

The exposed archaeological burial and associated cultural material indicate a locality of *high heritage sensitivity* and confirm the presence of significant precolonial archaeological deposits along the north-western boundary of the development area and possibly within the proposed development area. The following recommendations and mitigation measures must be implemented prior to the commencement of the construction and during the construction activities once all of the pre-construction mitigation measures have been implemented:

1. Archaeological Monitoring during Vegetation Clearing and Excavations:

A qualified archaeologist must conduct archaeological monitoring during all vegetation-clearing activities and subsequent excavations associated with the proposed development. Monitoring is required due to the confirmed presence of archaeological human remains and associated cultural material along the north-western boundary of the project area, as well as the broader heritage sensitivity of the Walmer dune-landscape. Vegetation clearing and initial earthworks have the potential to expose additional burials, shell middens, stone-artefact scatters, or other subsurface archaeological deposits that were not visible during the desktop update

Monitoring must occur during:

- Mechanical or manual vegetation removal, particularly in areas of dune deflation, natural hollows, or previously undisturbed terrain.
- Topsoil stripping and bulk earthworks, including trenching, levelling, and foundation excavations.
- Any ground-disturbing activities within proximity to the previously exposed burial locality.

If archaeological material, human remains, or burial-related features are identified at any stage, all work in the immediate area must cease, and the finds must be reported to ECPHRA in accordance with Section 36 of the National Heritage Resources Act (Act 25 of 1999). Work may only resume once the heritage authority has issued written instructions or a permit authorising further action.

This monitoring requirement must be incorporated into the contractor's method statements and the project's Environmental Management Programme (EMPr) to ensure compliance with NEMA and the NHRA.

2. Inclusion of Living Heritage in the Public Participation Process:

It is recommended that living heritage considerations be formally included as part of the public participation process in accordance with Sections 3(2)(b) and 38(3) of the National Heritage Resources Act (NHRA, Act 25 of 1999). Public consultation must provide affected communities, traditional leaders, and knowledge holders with the opportunity to identify culturally meaningful places, ritual spaces, ancestral associations, and other forms of living heritage that was not visible during field assessment. The archaeologist must be informed of any living heritage spaces that may be identified during the public participation process. These spaces must be identified and documented together with the affected communities who have identified them. The results of the consultation must be included as part of an updated or revised report including mitigation measures for these sites and possible no-go zones.

3. Include Heritage Awareness in Contractor Induction:

Contractor teams must be briefed on heritage sensitivities, chance find procedures, and reporting requirements. Heritage awareness should form part of environmental induction and ongoing site compliance monitoring.

4. Implementation of a Chance-Find Procedure (see Appendix D):

A formal chance-find procedure must be implemented for all contractors. If human remains, grave structures, artefacts, or culturally significant features are uncovered, work must stop immediately and ECPHRA must be notified. The procedure must be included in contractor induction training.

5. Documentation and Reporting:

All heritage-related actions, including public participation, consultation, monitoring, chance-find responses, and assessments—must be documented and included in the final heritage compliance report submitted to ECPHRA.

6. Management of Pre-Colonial Material and Human Remains:

If concentrations of pre-colonial archaeological heritage material, including subsurface dense artefact accumulations, associated cultural deposits, or human remains such as graves or burials—are uncovered during construction, all work must cease immediately and the discovery must be reported without delay to the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) at 043 492 1370. No further disturbance may occur until the heritage authority has provided guidance.

Should ECPHRA require further investigation, Phase 2 mitigation may be undertaken in the form of controlled test-pitting, sampling, or systematic excavation and collection of

the archaeological or heritage material. The purpose of Phase 2 mitigation is to establish the contextual status, extent, and significance of the site and, where appropriate, to remove the archaeological deposit prior to the continuation of development activities. All costs associated with Phase 2 mitigation, including specialist fees, excavation, documentation, and reporting, will be the responsibility of the developer.

1 INTRODUCTION

1.1 Background Information (extract from the Background Information Document compiled by Abantu Environmental)

Nelson Mandela Bay Municipality (NMBM) has appointed SRK Consulting to conduct an Environmental Impact Assessment (EIA) process for the proposed development of low-cost housing on Erf 11305, Walmer, as well as a Basic Assessment (BA) for the associated housing development on a 64.2 ha portion of Erf 1948, and connections to services infrastructure to the area. This phase 1 archaeological impact assessment (AIA) focuses on the proposed low-cost housing development to be situated on Erf 11305, Walmer, a separate report (Phase 1 AIA) discusses the assessment conducted for the development of proposed transitional and permanent low-cost housing development to be situated on Erf 1948.

Nelson Mandela Bay Municipality is proposing construction of Walmer housing development, including associated facilities and infrastructure on Erf 11305, Walmer within the Nelson Mandela Bay Municipality. The erf is located west of the existing Wamer township along Victoria Drive. The housing development will provide a mix of housing typologies and associated facilities which include the following:

Housing typologies and associated facilities

- Free Basic House/RDP
- GAP/FLISP
- Social Housing
- Open/GAP market housing

Other land uses

- Business Zone I- to provide for business's such as a supermarket, bottle store, service trades etc with parking provision at 3.33 bays per 100m².
- Institutional Zone I- school site
- Authority Zone - authority uses such as police station, fire services, telecommunications facilities etc.
- Open Space Zone I- public open space
- Special use- conservation usage (Forest patches)
- Transportation Zone II- public Zone

The total area of the site is 43.73 ha. The Gross Residential Area (single dwellings) is 11.11 ha with Gross Residential Density (single dwellings) being 14.90 units/ha and a Nett Residential Density (single dwellings) being 58.69 units/ha. The average erf size for single dwellings is 170.41m². No internal infrastructure is currently in place on site, however electricity, sewer and water will be connected onto existing bulk infrastructure currently servicing the surrounding areas.

1.2 Applicant

Nelson Mandela Bay Municipality (NMBM)

1.3 Environmental Assessment Practitioner (EAP)

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2 SCOPE OF WORK AND TERMS OF REFERENCE

The purpose of the study was to conduct a phase 1 archaeological impact assessment (AIA) for the proposed construction of the Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province.

The survey was conducted to:

- Identify and map possible heritage sites and occurrences using published and database resources;
- Provide a description of the archaeology and cultural heritage of the sites and identify and map any sites of archaeological or cultural significance that may be impacted by the proposed project;
- Assess the sensitivity and conservation significance of any sites of archaeological or cultural heritage significance affected by the proposed project;
- Identify and assess the significance of the potential impacts of the proposed project on archaeological and cultural heritage;
- Make recommendations on the protection and maintenance of any significant cultural heritage and/or archaeological sites that may occur on site;

- Identify practicable mitigation measures to reduce negative impacts on the archaeological resources and indicate how these can be incorporated into the construction and management of the proposed project;
- Provide guidance for the requirement of any permits from the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) that might become necessary.

Archaeological, historical, and cultural material remains, features, and sites are evaluated and assessed based on the following points:

- Type of site;
- Location and environmental surrounds;
- Site category;
- Context and condition;
- Estimated size and depth of deposit;
- Cultural affinities;
- Record site content;
- Record basic information of finds;
- Estimate relative age of sites from cultural material and other information;
- Record and describe graves, graveyards, and informal burials;
- Assess the importance and significance of material remains, features, and sites; and
- Significance ratings based on local to international.

3 HERITAGE LEGISLATIVE AND POLICY FRAMEWORK

The phase 1 archaeological and cultural impact assessment was conducted as a requirement of the ECPHRA (Eastern Cape Provincial Heritage Authority) and National Heritage Resources Act 25 of 1999, Section 38 (1)(8):

38. (1) Subject to the provisions of subsections (7), (8) and (9), any person who intends to undertake a development categorized as –

(a) the construction of a road, wall, power line, pipeline, canal or other similar form of linear development or barrier exceeding 300 m in length;

(b) the construction of a bridge or similar structure exceeding 50 m in length;

(c) any development or other activity which will change the character of the site – (i) exceeding 5 000 m² in extent, or

(d) the re-zoning of a site exceeding 10 000 m² in extent,

This report follows the minimum standard guidelines required by the South African Heritage Resources Agency (SAHRA) and the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) for compiling a full Phase 1 Archaeological Impact Assessment (AIA). The Eastern Cape Provincial Heritage Resources (ECPHRA) has been the competent authority in the Eastern Cape Province since 2012. All heritage reports must be

submitted to the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) for comment and uploaded to the South African Heritage Information System (SAHRIS).

4 ARCHAEOLOGICAL BACKGROUND

Little systematic archaeological research has been conducted within the immediate area of the proposed development. However, several relevant archaeological and heritage impact assessments have been conducted within the immediate surrounding vicinity and along the wider coastal region between Kings Beach and Van Stadens River (Binneman 2008, 2009, 2010, 2011, 2012; Binneman & Booth 2010; Booth, 2013a/b; Van Ryneveld 2010, 2013; Webley 2005, 2007). These impact assessments have identified several Early, Middle, and Later Stone Age stone artefacts and sites distributed along the coastline as well as evidence of Khoekhoen pastoralist occupation and/or interaction by the presence of broken earthenware pot sherds. Archaeological sites in the form of shell middens and scatters have also been reported along this coastline and within the 5 km archaeologically sensitive coastal zone.

Historical research on the early settlement in Walmer shows that the area proposed for the development of low-cost housing development and surrounds was situated on the farm Welbedacht and was later divided into several properties.

4.1 Early Stone Age (ESA) - 1.5 million to 250 000 years ago

The Early Stone Age from between 1.5 million and 250 000 years ago refers to the earliest that *Homo sapiens sapiens* predecessors began making stone tools. The earliest stone tool industry was referred to as the Olduvai Industry originating from stone artefacts recorded at Olduvai Gorge, Tanzania. The Acheulian Industry, the predominant southern African Early Stone Age Industry, replaced the Olduvai Industry approximately 1.5 million years ago, is attested to in diverse environments and over wide geographical areas. The hallmark of the Acheulian Industry is its large cutting tools (LCTs or bifaces), primarily handaxes and cleavers. Bifaces emerged in East Africa more than 1.5 million years ago (mya) but have been reported from a wide range of areas, from South Africa to northern Europe and from India to the Iberian coast. The end products were similar across the geographical and chronological distribution of the Acheulian techno-complex: large flakes that were suitable in size and morphology for the production of handaxes and cleavers perfectly suited to the available raw materials (Sharon 2009).

One of the most well-known Early Stone Age sites in southern Africa is Amanzi Springs (Deacon 1970), situated about 10 km north-east of Uitenhage and 45 km south east of the WEF site. The site is situated on a north-facing hill overlooking the Coega River. The earliest reference to the spring was made by an early traveller, Barrow (1801). FitzPatrick first reported stone artefacts in the area in 1924. Ray Inskeep (Inskeep 1965) conducted a small-scale excavation of the site in 1963. It was only in 1964 and 1965 that large scale excavations were conducted by Hilary Deacon. In a series of spring

deposits, a large number of stone tools were found *in situ* to a depth of 3-4 m. Wood and seed material preserved remarkably very well within the spring deposits, and possibly date to between 800 000 to 250 000 years old.

Other Early Stone Age sites that contained preserved bone and plant material include Wonderwerk Cave in the Northern Province, near Kimberly and Montagu Cave in the Western Cape, near the small town of Montagu (Mitchell 2007). Early Stone Age sites have also been reported in the foothills of the Sneeuberge Mountains (in Prins 2011).

The location of Early Stone Age sites is biased by several factors, the change in land surface, so that the evidence of coastal exploitation is absent, the survival of Early Stone Age material either *in situ* or sealed within Pleistocene deposits is limited by soil and water activities and numerous processes in environmental change over time and research interests of professional archaeologists.

Early Stone Age stone artefacts have been documented near Theescombe in the underlying calcrete layers (Binneman 2010).

4.2 Middle Stone Age (MSA) – 250 000 – 30 000 years ago

The Middle Stone Age spans a period from 250 000 - 30 000 years ago and focuses on the emergence of modern humans through the change in technology, behaviour, physical appearance, art and symbolism. Various stone artefact industries occur during this time period, although less is known about the time prior to 120 000 years ago, extensive systemic archaeological research is being conducted on sites across southern Africa dating within the last 120 000 years (Thompson & Marean 2008). The large handaxes and cleavers were replaced by smaller stone artefacts called the Middle Stone Age flake and blade industries. Surface scatters of these flake and blade industries occur widespread across southern Africa although rarely with any associated botanical and faunal remains. It is also common for these stone artefacts to be found between the surface and approximately 50-80 cm below ground. Fossil bone may in rare cases be associated with Middle Stone Age occurrences (Gess 1969). These stone artefacts, like the Earlier Stone Age handaxes are usually observed in secondary context with no other associated archaeological material.

The Middle Stone Age is distinguished from the Early Stone Age by the smaller-sized and distinctly different stone artefacts and *chaîne opératoire* (method) used in manufacture, the introduction of other types of artefacts and evidence of symbolic behaviour. The prepared core technique was used for the manufacture of the stone artefacts which display a characteristic faceted striking platform and includes mainly unifacial and bifacial flake blades and points. The Howiesons Poort Industry (80 000 - 55 000 years ago) is distinguished from the other Middle Stone Age stone artefacts: the size of tools is generally smaller, the range of raw materials include finer-grained rocks such as silcrete, chalcedony, quartz and hornfels, and include segments, backed blades and trapezoids in

the stone toolkit which were sometimes hafted (set or glued) onto handles. In addition to stone artefacts, bone was worked into points, possibly hafted, and used as tools for hunting (Deacon & Deacon 1999).

Other types of artefacts that have been encountered in archaeological excavations include tick shell (*Nassarius kraussianus*) beads, the rim pieces of ostrich eggshell (OES) water flasks, ochre-stained pieces of ostrich eggshell and engraved and scratched ochre pieces, as well as the collection of materials for purely aesthetic reasons. Although Middle Stone Age artefacts occur throughout the Eastern Cape, the most well-known Middle Stone Age sites include the type-site for the Howiesons Poort stone tool industry, Howiesons Poort (HP) rock shelter, situated close to Grahamstown, and Klasies River Mouth Cave (KRM), situated along the Tsitsikamma coast. Middle Stone Age sites are located both at the coast and in the interior across southern Africa.

Middle Stone Age stone artefacts have been documented near Theescombe and along the Schoenmakerskop - Sardinia Bay coastline (Binneman 2010, Webley 2005). One occurrence of Middle Stone Age artefacts also occurred north of Buffelsfontein Road near the proposed site of development (Van Ryneveld 2013).

4.3 Later Stone Age (LSA) – 30 000 years ago – recent (100 years ago)

The Later Stone Age (LSA) spans the period from about 20 000 years ago until the colonial era, although some communities continue making stone tools today. The period between 30 000 and 20 000 years ago is referred to as the transition from the Middle Stone Age to Later Stone Age; generally, there is a lack of crucial sites and evidence that represent this change, however, several sites to the west of the proposed development in the eastern Cape Highlands, north in eastern Lesotho and the Drakensburg in KwaZulu Natal have been dated to this time period. By the time of the Later Stone Age the genus *Homo*, in southern Africa, had developed into *Homo sapiens*, and in Europe, had already replaced *Homo neanderthalensis*.

The Later Stone Age is marked by a series of technological innovations, new tools and artefacts, the development of economic, political and social systems, and core symbolic beliefs and rituals. The stone toolkits changed over time according to time-specific needs and raw material availability, from smaller microlithic Robberg (20/18 000-14 000 ya), Wilton (8 000-the last 500 years) Industries and in between, the larger Albany/Oakhurst (14 000-8 000ya) and the Kabeljous (4 500-the last 500 years) Industries. Bored stones were used as part of digging sticks, grooved stones for sharpening and grinding, and stone tools fixed to handles with mastic also become more common. Fishing equipment such as hooks, gorges and sinkers also appear within archaeological excavations. Polished bone tools such as eyed needles, awls, linkshafts and arrowheads also become a more common occurrence. Most importantly bows and arrows revolutionized the hunting economy. It was only within the last 2 000 years that earthenware pottery was introduced, before then tortoiseshell bowls were used for

cooking and ostrich eggshell (OES) flasks were used for storing water. Decorative items like ostrich eggshell and marine/fresh water shell beads and pendants were made.

Hunting and gathering made up the economic way of life of these communities; therefore, they are normally referred to as hunter-gatherers. Hunter-gatherers hunted both small and large game and gathered edible plantfoods from the veld. For those that lived at or close to the coast, marine shellfish and seals and other edible marine resources were available for gathering. The political system was mainly egalitarian, and socially, hunter-gatherers lived in bands of up to twenty people during the scarce resource availability dispersal seasons and aggregated according to kinship relations during the abundant resource availability seasons. Symbolic beliefs and rituals are evidenced by the deliberate burial of the dead and in the rock art paintings and engravings scattered across the southern African landscape.

The majority of hunter-gatherer archaeological sites found usually date from the past 10 000 years where San hunter-gatherers inhabited the landscape living in rock shelters and caves as well as on the open landscape. These latter sites are difficult to find because they are in the open veld and often covered by vegetation and sand. Sometimes these sites are only represented by a few stone tools and fragments of bone. The preservation of these sites is poor and it is not always possible to date them (Deacon and Deacon 1999). Caves and rock shelters, however, in most cases, provide a more substantial preservation record of pre-colonial human occupation.

Later Stone Age sites occur both at the coast (caves, rock shelters, open sites and shell middens) and in the interior (caves, rock shelters and open sites) across southern Africa. There are more than a few significant Later Stone Age sites in the Eastern Cape. The most popular are the type-sites for the above-mentioned stone artefact industries, namely Wilton (for the Wilton Industry), Melkhoutboom (for the Albany Industry), both rock shelters situated to the west of Makhanda (formerly Grahamstown, and Kabeljous Rock Shelter (for the Kabeljous Industry) situated just north of Jeffreys Bay. Caves and rock shelters that were occupied by the San during the Later Stone Age sometimes contain numerous paintings along the walls.

There are many San hunter-gatherers sites in the nearby Groendal Wilderness Area and adjacent mountains. Here, caves and rock shelters were occupied by the San during the Later Stone Age and contain numerous paintings along the cave walls. The last San/KhoiSan group was killed by Commando's in the Groendal area in the 1880s.

Several Later Stone Age shell midden sites as well as scatters situated on the surface of the loose dune sand with associated stone and other artefacts have been documented along Marine Drive and the Schoenmakerskop – Sardinia Bay coastline and further west, possibly dating between 6 000 – 8 000 years ago and younger than 4 500 years (Binneman 2008, 2010, 2011; Binneman & Booth 2010; Webley 2005).

4.4 Last 2 000 years – Khoenkhoen Pastoralism

Some 2 000 years ago Khoenkhoen pastoralists occupied the region and lived mainly in small settlements. They introduced domesticated animals (sheep, goat and cattle) and ceramic vessels to southern Africa. Often archaeological sites are found close to the banks of large streams and rivers. Large piles of freshwater mussel shell (called middens) usually mark these sites. Prehistoric groups collected the freshwater mussel from the muddy banks of the rivers as a source of food. Mixed with the shell and other riverine and terrestrial food waste are also cultural materials. Human remains are often found buried in the middens (Deacon and Deacon 1999).

Until 2 000 years ago, hunter-gatherer communities traded, exchanged goods, encountered and interacted with other hunter-gatherer communities. From about 2 000 years ago the social dynamics of the southern African landscape started changing with the immigration of two 'other' groups of people, different in physique, political, economic and social systems, beliefs and rituals. One of these groups, the Khoekhoen pastoralists or herders entered southern Africa with domestic animals, namely fat-tailed sheep and goats, travelling through the south towards the coast. Khoekhoen pastoralist sites are often found close to the banks of large streams and rivers. They also introduced thin-walled pottery common in the interior and along the coastal regions of southern Africa. Their economic systems were directed by the accumulation of wealth in domestic stock numbers and their political make-up was more hierarchical than that of the hunter-gatherers.

The most significant Khoekhoen pastoralist sites in the Eastern Cape include Scott's Cave near Patensie (Deacon 1967), Goedgeloof shell midden along the St. Francis coast (Binneman 2007) and Oakleigh rock shelter near Komani (formerly Queenstown) (Derricourt 1977). Often, these archaeological sites are found close to the banks of large streams and rivers. It is much more difficult to locate Khoekhoen open sites, owing to their settlement pattern and lack of stone artefacts, makes evidence of occupation almost 'invisible'.

Several shell midden sites as well as scatters situated on the surface of the loose dune sand are associated with the occupation of Khoekhoen pastoralists within the last 2 000 years. These middens and scatters are differentiated from the Later Stone Age sites scatters by the occurrence of earthenware pottery and the faunal remains of domesticated stock such as cattle and sheep. Sites with the occurrence of pottery and other artefacts have been documented along Marine Drive and the Schoenmakerskop – Sardinia Bay coastline and further west (Binneman & Booth 2010).

4.5 Last 2 000 Years - The Iron Age

According to Huffman (2004) multiple strands of evidence help to clarify ancient Nguni history such as linguistics, anthropology and archaeology indicate an Early Iron Age

homeland in East Africa. Nguni speakers started moving south out of East Africa from around AD 1000, probably because of widespread drought and concomitant social disruptions. Once in southern Africa, they continued to live in small political units and to employ similar strategies in the face of drought and social disruptions. They built defensive walling between AD 1 300 and 1 500, and they moved out of KwaZulu-Natal at least three times. The scale of the last disruption, known as the Mfecane or Difaqane, was significantly greater, and it created the first Nguni Empire in southern Africa.

The Nguni-speaking agropastoralists or 'first-farming communities' or Iron Age communities entered southern Africa along the east coast within the last 2 000 years. They owned domestic stock, namely goats, sheep and cattle. Their pottery was different to that of the Khoekhoe, in the shape, thickness, heavy decoration and variety of the vessels. First farming communities lived a relatively sedentary way of life, they planted sorghum and millet, and were therefore limited to settle in the summer rainfall areas. In addition, first farming communities possessed the skill of metal working, having the ability to mine and work iron, copper, tin and even gold. Their economic systems were also based on the accumulation of wealth through owner-ship and their political organization was slightly more hierarchical than that of the Khoekhoen.

Much research has been conducted on the Iron Age (IA) across southern Africa, therefore resulting in well-established chronological and typological frameworks and settlement and economic patterns for the Iron Age sequence (Huffman 2007).

Mackenzie notes that the earliest date for Iron Age settlement in the geographical area formerly referred to as the Transkei is about AD 700 (Cronin, 1982). It has been suggested by Derricourt (1974) that tribes of Iron Age farmers were concentrated mainly in the coastal zone between the Umzimvubu and Kei Rivers. The inland areas and interior basins were the domain of the nomadic hunter-gatherer San and that Iron Age farmers were mainly concentrated in the coastal zone between the Umzimvubu and Kei Rivers. The Nguni people who inhabit Transkei today may be the descendants of these Iron Age farmers, 'although it is possible that their ancestors moved south into Transkei from Natal (Wilson, 1969)

The Iron Age sequence is based on ceramic phases determined by vessel profile and decoration motif and placement. According to Huffman (2007) an eastern migration stream, known as the Chifumbaze Complex spread southwards from East Africa south into southern Africa during the period of about AD 200–300 where several KwaZulu-Natal and north-Eastern Cape sites were occupied. The Early Iron Age sites in the Eastern Cape dates to between circa AD 600 to AD 900 and can be divided into the following ceramic facies (Maggs 1989; Huffman 2007):

- Msuluzi (AD 500-700);
- Ndondondwane (AD 700 – 800);
- Ntshekane (AD 800 – 900).

Thicker and decorated pottery sherds, kraals, possible remains of domesticated animals, upper and lower grindstones, storage pits, metal and iron implements are associated with identifying Early Iron Age sites. The sites are generally large settlements, but the archaeological visibility may in most cases be difficult owing to the organic nature of the homesteads. Additional evidence of these agropastoralist groups derives from rock paintings of cattle painted by hunter-gatherer groups who encountered or interacted with these communities. The bones of cattle and sheep excavated at Oakleigh Shelter near Komani (formerly Queenstown) may be an indication of possible stock theft (Derricourt 1977). The Early Iron Age (EIA) first-farming communities during the first millennium AD generally preferred to occupy river valleys within the eastern half of southern Africa owing to the summer-rainfall climate that was conducive for growing millet and sorghum.

In comparison to other areas containing Iron Age sites only a small amount of Iron Age research has been conducted in the Eastern Cape thus far. Binneman (1992) supported this view noting that the southerly limit of Early Iron Age settlement was thought to be along the Transkei coast, with Mpame dating back to as early as AD 640 (Cronin 1982). There has been some speculation, however, that Early Iron Age (EIA) populations may have spread well south of the Transkei into the Ciskei, possibly up to the Great Fish River. These areas are on the very outer limits of the summer rainfall region on which the EIA people were dependent for cultivating their crops. It is commonly accepted that an ecological boundary restricted these populations in their southward migration.

Earlier investigations into the Early Iron Age in the Transkei and Ciskei includes work at Buffalo River Mouth (Wells 1934; Laidler 1935), at Chalumna River Mouth (Derricourt 1977) and additional research by Feely (1987) and Prins (1989). Early Iron Age Sites (EIA) sites also include Kulubele situated in the Great Kei River Valley near Qumrha (formerly Khomga) (Binneman 1996) which provided a date of 1250 $\pm$ 40 BP (Pta-5865), with a most probable calibrated age of AD 799 (Vogel, pers. Comm in Binneman et al. 1992), Ntsitsana situated in the interior Transkei, 70 km west of the coast, along the Mzimvubu River (Prins & Granger 1993), and Canasta Place situated approximately 15-20 km west of KuGompo (formerly East London), on the west bank of the Buffalo (Qonce) River (Nogwaza 1994). Along the coast, near Coffee Bay, Early Iron Age sites have been dated from AD 670 and includes the sites of Mpame and Mqanduli. Early Iron Age pottery scatters have been documented along several areas of the Wild Coast coastline including Zig-Zag Cave near Port St Johns (Derricourt 1977). The first-millennium site, Ntsitsana, was excavated and two occupational phases dated to ca. AD 660 and AD 770 have been identified. Ceramics associated with these phases are typologically similar to coeval ceramics of early farming settlement in Natal, although local differences are evident (Prins & Granger).

Hilltop settlement is mainly associated with Later Iron Age (LIA) settlement patterns that occurred during the second millennium AD. The Later Iron Age communities later moved from settlement in river valleys to the hilltops. Later Iron Age settlements have been

formally recorded by the Albany Museum. With the exception of the Tembu, stone buildings which characterizes the Iron Age sites of Sotho areas, is absent in the Transkei and Ciskei, and a pattern of some mobility without, it is presumed, a stone working technology of significance, makes the allocation of sites a major problem (Derricourt 1973).

Huffman's (2004) ceramic sequence among the Nguni groups contains three facies:

- Blackburn (AD 1 050 – 1 300): along north and south coasts of KwaZulu Natal;
- Moor Park (AD 1 300 – 1 700): first recorded in Estcourt Midlands then along Transkei coast where it was called Umgazana Ware. Appears south of the Mtamvuma River and it is suggested that it was the beginning of the division between southern and northern Nguni people and probably continued into the nineteenth century;
- Nqabeni (AD 1 700 – 1 850): style centres on KwaZulu Natal.

4.6 Unmarked Burials and Exposed Human Remains

It is difficult to detect the presence of archaeological human remains on the landscape as these burials, in most cases, are not marked at the surface. Human remains are usually observed when they are exposed through erosion or construction activities for development. In some instances, packed stones or rocks may indicate the presence of informal pre-colonial burials.

4.7 Rock Art (Paintings and Engravings)

Rock art is generally associated with the Later Stone Age period mostly dating from the last 5 000 years to the historical period. It is also the most visible form of archaeological evidence. It is difficult to accurately date the rock art without destructive practices. The southern African landscape is exceptionally rich in the distribution of rock art which is determined between paintings and engravings. Rock paintings occur on the walls of caves and rock shelters across southern Africa and are prolific in the Southern Drakensberg, north-eastern Cape extending the entire Drakensberg range into KwaZulu-Natal and Lesotho. Rock engravings are limited to the Karoo and Northern Cape Regions and do not generally occur within the north-eastern Cape region and Transkei region.

Rock art research within the Southern Drakensberg has been conducted by several researchers and students from the Rock Art Research Institute, University of the Witwatersrand, over a period of 25 years, with a well-established database of site from Nqanqarhu (formerly Maclear), Tsolo, Ekhepini (formerly Barkly East), Ugie, Dordrecht and the wider region and extent of the Drakensberg range and Maluti Mountains. The South African Rock Art Database established by the Rock Art Research Institute is a useful source for rock art site information across southern Africa.

The Kei River valley was route of movements by Stone Age hunters. Stow (Stow & Bleek 1930) and Frobenius (1931) reproduced material from the Kei Basin, Huss and Otto

(1925) carried out exploration further down the Kei Valley (in Derricourt 1997). Derricourt also notes that Hewitt and Stapleton (1931) reported shelters with paintings near Cala. Rock paintings have been recorded on at least 20 farms in the Indwe district (Van Riet Lowe 1941). San rock paintings – especially in the foothills of the Drakensberg near Elliot and Ugie (Blundell 2004; Mallen 2008; White 2010). From 2011, more than 200 rock art sites have been recorded in the Matatiele area as part of a systematic survey conducted as part of the Matatiele Archaeology and Rock Art (MARA) research programme (Pinto *et al.* 2017).

The use of rock art sites as sacred sites continues in contemporary society as part of traditional African rituals. The pigments of paintings are still considered as containing spiritual powers for healing in some cases and rain-making. Pinto *et al.* (2017) notes that the site MAF 1 within the Matatiele area continues to be used as a traditional initiation school for boys held annually at the site.

4.8 Historical Period (last 500 years)

The history of Walmer dates back to the early 1800's before the mass arrival of British Settlers to Port Elizabeth. During 1815 the farm Welbedacht was granted to AM Muller. The farm was located to the south-west of Port Elizabeth and covered an area of just under 14 square miles. The farm was inherited by Muller's eight sons when he died in 1845, however, the sons could not decide on how to subdivide the property and as a result the farm was sold and the money distributed to the heirs. In 1855 the area was transferred to the municipality of Port Elizabeth and renamed Walmer in honour of the Duke of Wellington. By March 1855 the land was laid out and resolved to sell 400 plots by public auction. A number of stands were reserved for the Dutch Reformed Church and the Anglican Church. The plan of the village included wide streets and a plentiful supply of water. In 1899 Walmer was awarded separate municipal status while its residential character, spacious residential plots and attractive dwellings attracted families with young children and the elderly. In 1967 Walmer became part of the Port Elizabeth Municipality.

The history of the Port Elizabeth-Avontuur railway, which is located north of the proposed development area, shows that its passenger service has never been much of a revenue earner. Passengers were initially carried on scheduled trains. However, with their numbers dwindling over the years due to competition from buses operated by the then South African Railway's Road Motor Service, the railway authorities eventually had to terminate the service. A short suburban branch line to serve the town of Walmer (at that stage on the outskirts of Port Elizabeth!) was brought into operation in 1906. This service showed a loss from the start because of lack of community support and was abandoned in 1928.

The sport of horse racing in South Africa enjoys a long and rich history that can be traced back to 1797, with the first recorded race club meeting taking place in 1802.

Unfortunately the date for the establishment for the Arlington Race Course, situated immediately east of the proposed development area, could not be found.

The Walmer Golf Club, or more fondly known as Little Walmer, was founded in 1897 which makes it one of the oldest golf clubs in the country. The Walmer Golf Club borders the proposed development area to the west.

The early population of Port Elizabeth consisted mainly of Europeans, as well as persons of mixed race which the Apartheid system subsequently labelled as 'Coloureds' and 'Cape Malays'. Initially few members of the indigenous population were attracted to the town, and almost from the onset economic status was related to skin colour. Thus segregation was an integral part of early Port Elizabeth, with the industrial areas of South End and North End being predominantly Coloured, while the Central and Western suburbs were mainly White.

A large influx of Xhosa refugees into the Colony occurred after the cattle-killing of 1857 and they were rapidly absorbed into the wage-labour market on account of a labour shortage in towns of the eastern frontier districts. Thus, a rising number of Black workers began to enter Port Elizabeth seeking employment, so then a number of so-called 'locations' began to be established on the outskirts of the White suburbs. The growth of Port Elizabeth's African population led to the overcrowding of the Native Strangers' Location. Many of these new arrivals were accommodated in a number of locations on private property. The largest was Gubb's Location which was situated on the 'Mill Property' (now Mill Park), with others in the Baakens River Valley, Walmer and South End

The pattern of 'locations' was first established in 1834 when the Colonial Government made a grant of land to the London Missionary Society (LMS) to provide a burial ground and residential area for Hottentots and other coloured people who were members of the Church (Baines 1989) located at the crest of Hyman's Kloof (Russel Road). Other workers however chose to erect their homes closer to their places of employment, or where a supply of portable water was available. With few exceptions these Black suburbs were informal in nature and residents there were forced to endure living conditions which contemporary observers described as being squalid and open to exploitation by capitalist landlords. Many Whites considered them to be unhealthy and petitions were reportedly organised demanding that they be removed to the outskirts of the town. These requests were in direct opposition to the needs of the growing commercial and industrial sectors which preferred to locate their labour sources close to the harbour and the inner city area. These conflicting vested interests created political tension within the Port Elizabeth Council which were only resolved in 1885 when the Municipality adopted its first set of markedly segregationist regulations. As a result suburbs for the exclusive use of Black residents who were not housed by employers, and who could not afford to purchase property were established on the outskirts of Port Elizabeth. Most prominent amongst them were including Walmer (1896).

In 1898 white business owners and white households wanted their black workers to remain close to their property so work could be more convenient. Although the area of the Gqebera Township was intended to be a white suburb, South African indigenous populations (blacks and coloureds) began to move into the area.

In 1901 an outbreak of Bubonic plague struck the town. This was a direct result of Argentinian fodder and horses being imported into South Africa by the British military during the Anglo-Boer conflict (now referred to as the South African War). These cargos also carried plague-infected rats and although many members of the White and Coloured communities were also affected, the Black population bore the brunt of the Plague Health Regulations. During this time most of Port Elizabeth's old locations were demolished (with the exception of Walmer), their resident belongings were arbitrarily destroyed and restrictions were imposed upon inter-town travel.

Gqebera, as Walmer Township is called in the Xhosa language that most of its residents speak, was designated to be in the 'whites only' area under the Apartheid Group Area Act 1955, and therefore the regime tried to remove the Township. Due to the strong resistance of the township's residents and support from the citizens in the nearby Walmer suburbs resident area, Gqebera was never destroyed. But the price was high; apartheid authorities would deny Walmer Township the most basic infrastructure.

The Driftsands, situated south-east of the proposed development area towards the coast became a dump site during the late 1800's to stabilise the shifting dune sands. People began settling behind the dune sands from the latter part of the 1800's. Three previous heritage impact assessments have identified the scatter of historical artefacts that is associated with the distribution of the Driftsands Historical Dump Site towards the village of Schoenmakerskop below the World War II fortified observation post, about 5 km south of the proposed site for the low-cost housing development as well as along the Sardinia Bay Road.

Previous surveys in the Driftsands area have revealed extensive historical dump material dating to the Victorian period. After European settlement of the area, the Driftsands threatened the harbour development of Port Elizabeth and it was decided in 1893 to stabilise the dunes by spreading the town garbage in a swathe from Happy Valley to Sardinia Bay. The rubbish was taken to the dunes, and the seeds of Australian acacias (Rooikrantz, Port Jackson, and long leaf wattles) planted in the garbage compost. This job was started in 1893 and completed in 1909.

5. DESCRIPTION OF THE PROPERTY

5.1. Location data

The proposed area for the low-cost housing development is situated about 5 km from the nearest coastline, therefore falling on the boundary of the generally considered 5 km archaeologically sensitive coastal zone. The site is situated between the Arlington Race Track to the west, Beaumont Estates residential area to the north and the Walmer Golf Club to the east. The village of Schoenmakerskop is situated about 5 km south along Victoria Drive. The site can be accessed off Victoria Drive.

5.2. Map

1:50 000 Map: 3325DC & DD 3425BA PORT ELIZABETH (Figure 1).

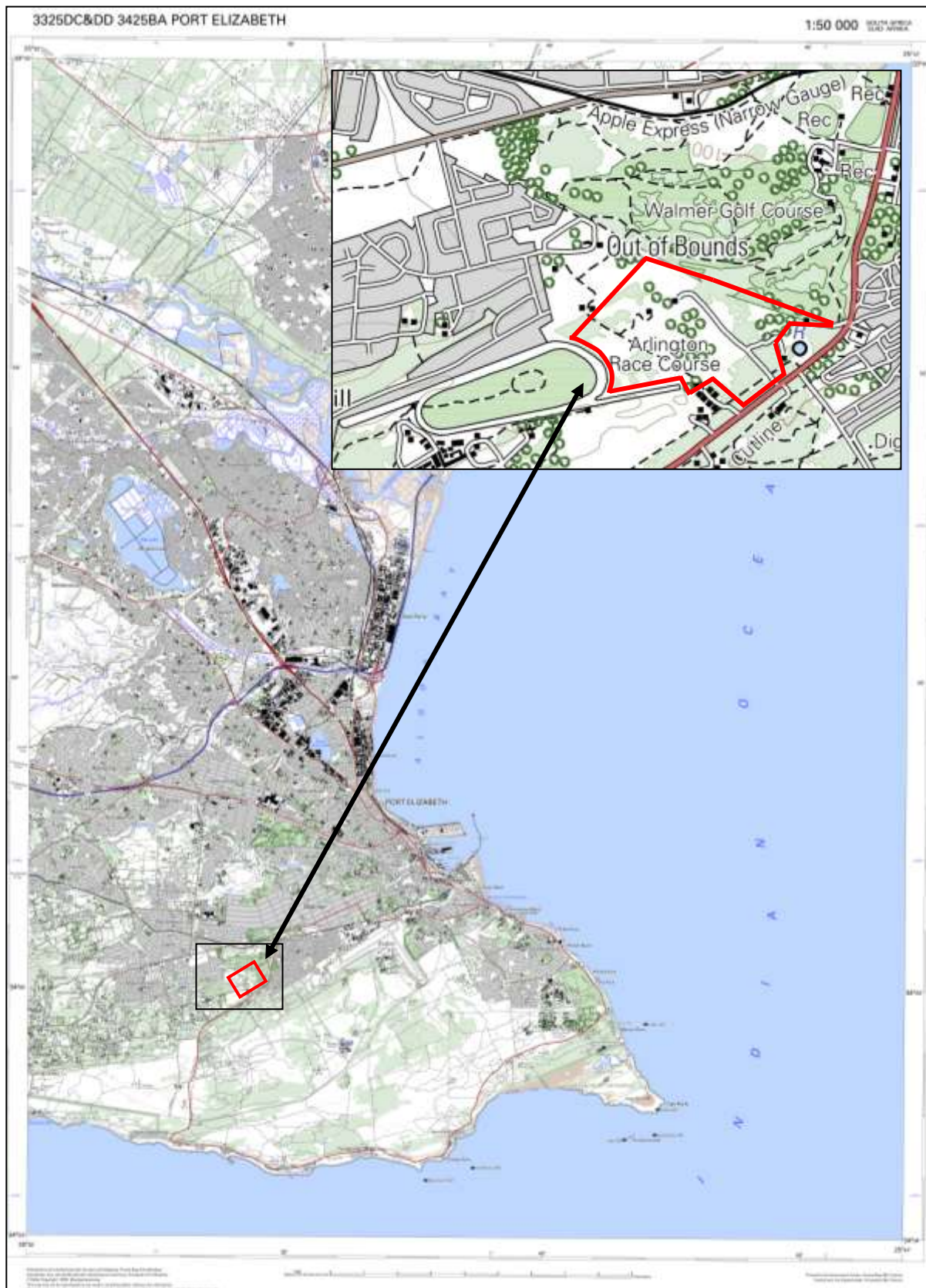


Figure 1. 1:50 000 topographic map 3325DC & DD 3425BA PORT ELIZABETH showing the location of the proposed Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province.

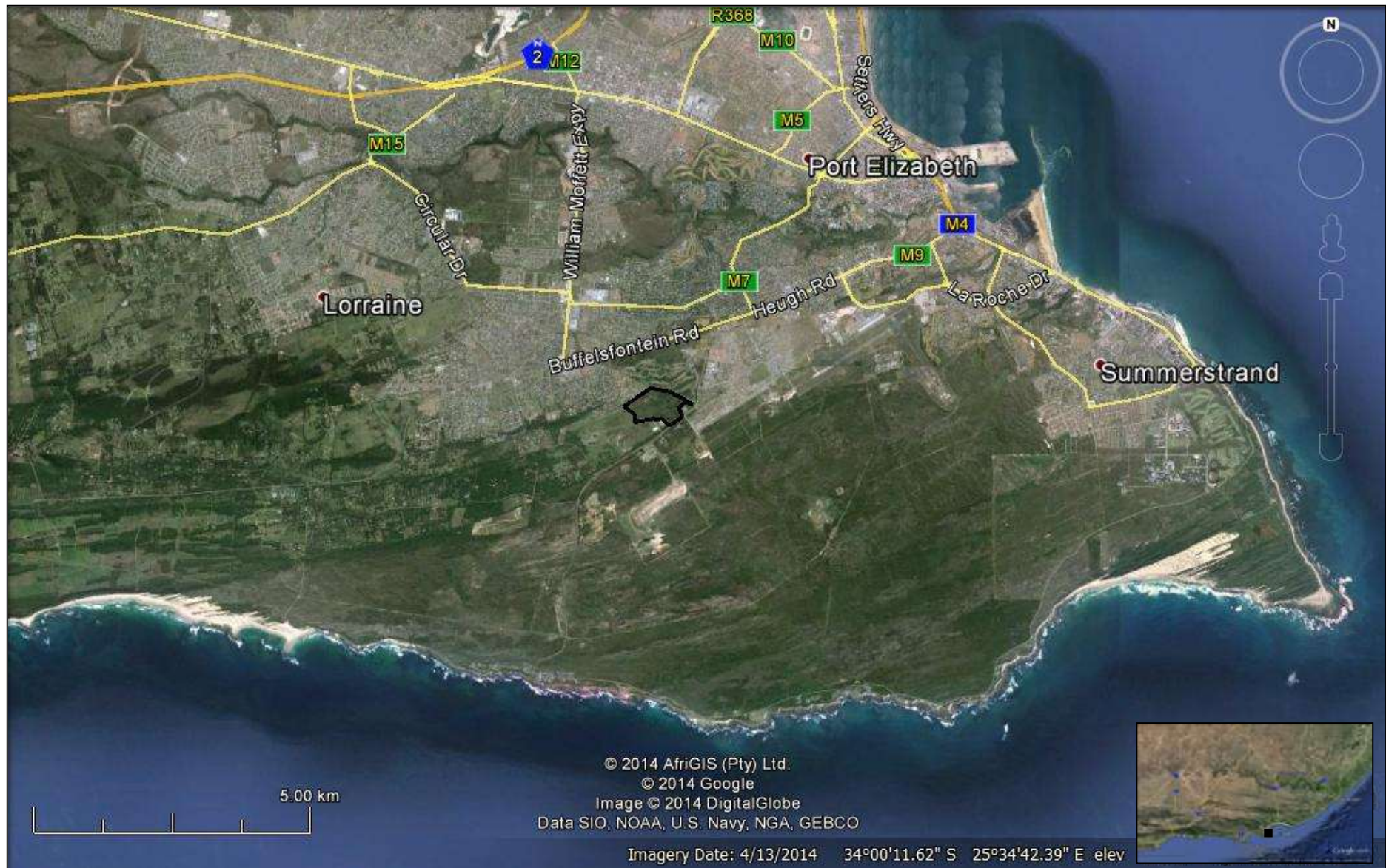


Figure 2. Aerial view of the location of the proposed Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province (black boundary).



Figure 3: Aerial view of the proposed area for the proposed Walmer Housing Development on Erf 11305 showing previous archaeological and heritage impact assessment conducted within the immediate vicinity (1. Webley 2005; 2. Webley 2007; 3. Booth 2013; 4. Binneman & Booth 2010; 5. Van Ryneveld 2010; Van Ryneveld 2013).



Figure 4. Close-up aerial view of the proposed area for the proposed Walmer Housing Development on Erf 11305, showing the location of the related Gqebera housing development on Erf 1948, the Arlington Race Course, and the Walmer Golf Course.



Figure 5. Close-up aerial view of the proposed area for the proposed Walmer Housing Development on Erf 11305 showing the development boundary, the survey track, and built environment structures on Erf 11305.

6. ARCHAEOLOGICAL INVESTIGATION

6.1. Methodology

The survey was conducted on foot by investigating the exposed and less densely vegetated areas. GPS readings and photographs were taken using a Garmin Oregon 550 (Table 1). The GPS readings have been plotted on Figures 3-5.

Note: ECPHRA has formally issued comments previously requesting that selfies be taken as proof of fieldwork; however, this practice is not supported by the Protection of Personal Information Act (POPIA) and introduces unnecessary privacy and data-handling risks. A selfie is not required by any heritage legislation and constitutes personal information containing biometric identifiers (such as facial features, body characteristics, and embedded location metadata). Selfies may also unintentionally capture individuals who have not provided consent, exposed sensitive locations or private property, and require secure storage, transmission, and archiving under POPIA's conditions for lawful processing. Given these risks, selfies should not be used as a default or required method of demonstrating field presence. Standard, POPIA-compliant evidence, such as geotagged site photographs, GPS tracklogs, and time-stamped field notes, provides verifiable proof of fieldwork without processing unnecessary personal data.

6.2. Results of the Archaeological Investigation

The proposed area for development was mostly covered in dense thicket and grass vegetation that obscured archaeological visibility over most of the area. Very few exposed areas allowed for the possibility of investigating for pre-colonial archaeological material and sites (Figures 6-8). The existing road, footpaths, and surface eroded areas were investigated for possible archaeological and other heritage remains.

The site is currently being used by the local community for various informal recreational, agricultural and other activities. A small group of cattle grazing was encountered in the western half of the site during the survey (Figure 9). The cattle most probably belong to members of the Gqebera Township. A makeshift soccer field is situated near the reservoir just north of the possible farmstead ruins (QBE3) on the south-western boundary of the site (Figure 10). Relatively recent but unused cultivated lands were identified near the northern boundary of the site (Figure 10). Fresh crops of recently planted cabbages and maize occur adjacent to the unused cultivated lands near the ruins of the built environment structure (QBE2).

Several informal dumping areas were encountered during the survey, some of these areas have been completely overgrown with the dense grass vegetation (Figure 12).

During the survey members of the local community (Gqebera Township) were chopping up trees for wood.



Figure 6. View of the general landscape showing the dense thicket vegetation.



Figure 7. View of the general landscape showing the dense grass vegetation.



Figure 8. View of one of the surface exposed areas investigated for archaeological heritage remains.



Figure 9. Cattle grazing on Erf 11305.



Figure 10. View of a makeshift soccer field situated on Erf 11305.



Figure 11. View of previously cultivated lands adjacent to cabbage and maize crops.



Figure 12. View of an area previously used for informal dumping.

No pre-colonial archaeological heritage remains or sites were identified during the survey. However, it is possible that archaeological shell midden sites and artefacts may be uncovered during the development activities.

Two building ruins (QBE2 AND QBE3) and one dipping tank (QBE1) were encountered during the survey. The two building ruins have been recorded on the 1:50 000 topographic map (Sixth Edition, 2002) (Figure 1). One other building / ruin has also been recorded on the 1:50 000 topographic map (Sixth Edition, 2002) (Figure 1), however, it is not recorded on previous editions of the 1:50 000 topographic maps (Second Edition, 1965 and Forth Edition, 1983), therefore, establishing that the building / ruin is younger than 60 years (co-ordinate has been provided in Table 1). This latter building / ruin was not encountered during the survey.

The dipping tank (QBE1) that would most probably have been used when the area was still used for farming or as a small holding is located in the eastern half of the area and is overgrown with vegetation growth (Figure 13).

The building ruin (QBE2) is located near the northern boundary of the site. The ruin has also been overgrown with dense vegetation growth. The dense vegetation around the ruin made it difficult to investigate whether any historical artefacts or more recent items were associated with the possible dwelling. The artefacts would have assisted in establishing a relative date for the ruin. Only two walls of the ruin remain standing, the rest of the building has collapsed (Figures 14-15). The ruin is older than 60 years as it is visible on the 1939 aerial photograph (aerial photograph provided by Mr Bryan

Wintermeyer). However, the structure may have been modified over time. An unidentified subsurface concrete feature is located within the immediate vicinity of the ruin (Figure 16). At first it resembled a shallow built up grave, however, no human remains were noted.

The building ruin (QBE3) is situated immediately outside the south-eastern corner of the proposed area for development, near the reservoir (Figures 17-18). The ruin is made up of what once was a stone walled dwelling. The only identifiable area of the dwelling is the sunken kitchen indicated by the remaining fireplace feature. Most of the walls have collapsed except for one of the stone walling structures that remains intact. The stone walling structure is attached to what once may have been the kitchen area and may have been the chimney. This stone walling structure remains standing at a height of about four metres. The remains of the side wall attached to this structure indicates that the general height of the dwelling may have been significantly lower than the remaining stone walling structure. Additional buildings, constructed from brick and cement, adjacent to the stone walling dwelling remain relatively intact as well as the possible underground reservoir used to store water. It is likely that the farmstead is associated with the early settlement in the area. However, it is possible that modern additions may have been made to the structure. It is unknown when these dwellings were abandoned. A built-up path leads north down the slight gradient. The dense vegetation around the ruin made it difficult to investigate whether any historical artefacts or more recent items were associated with the possible dwelling. The artefacts would have assisted in establishing a relative date for the ruin.

A substation (QBE4) is located within the south-eastern corner of the proposed development.



Figure 13. An unused dipping tank situated at QBE1.



Figure 14. View of the ruin of a building situated at QBE2.



Figure 15. Alternative view of the building ruin situated at QBE2.



Figure 16. Subsurface feature associated with the ruins situated at QBE2.



Figure 17. View of the ruins of a farmstead situated at the area marked QBE3.



Figure 18. Alternative view of the ruins of a farmstead situated at QBE3.

7. DESCRIPTION OF SITES

7.1. Built Environment

BE1: An unused dipping tank overgrown with vegetation.

BE2: Ruin of a dwelling and associated infrastructure.

BE3: Ruin of a farmstead.

BE4: Contemporary substation.

The ruins of the built environment are considered as having a low-medium cultural significance and have been allocated a heritage grading of:

'General' Protection B (Field Rating IV B): These sites should be recorded before destruction (usually Medium significance).

(See Table 1. for short descriptions and co-ordinates)

1. COORDINATES AND SITES FOR THE PROPOSED CONSTRUCTION OF THE WALMER HOUSING DEVELOPMENT ON ERF 11305, GQEBERHA, NELSON MANDELA BAY MUNICIPALITY (NMBM), EASTERN CAPE PROVINCE.

Table 1. Coordinates and sites for the the construction of the Walmer Housing Development on Erf 11305, Gqeberha, Nelson Mandela Bay Municipality (NMBM), Eastern Cape Province.

REFERENCE	DESCRIPTION	COORDINATE	HERITAGE GRADING
BE1	Unused dipping tank	33°59'52.60"S; 25°34'20.60"E	'General' Protection B (Field Rating IV B)
BE2	Ruin of dwelling	33°59'48.10"S; 25°34'11.00"E	'General' Protection B (Field Rating IV B)
BE3	Ruin of farmstead	33°59'56.70"S; 25°34'30.30"E	'General' Protection B (Field Rating IV B)
BE4	Substation	33°59'51.00"S; 25°34'34.15"E	'General' Protection B (Field Rating IV B)
Other building / ruin	Recorded on 1:50 000 topographic map (Sixth Edition, 2002) (Fig. 1)	33°59'52.93"S; 25°34'04.85"E	N/A

9. CULTURAL LANDSCAPE

Cultural landscapes are increasingly becoming a significant considering factor when conducting various archaeological and heritage impact assessments for proposed developments. The proposed development area, Erf 11305, is considered as having a low-medium cultural heritage significance. This significance attests to the ruins of the built environment related to earlier occupation in the area.

This section gives a brief introduction to the concept of cultural landscape and its relation to various aspects of the dynamic interaction of humans as cultural agents and the landscape as a medium. A description of the interwoven relationships of humans with the landscape over time will be given including the archaeological, historical, and contemporary connections. Lastly, the living heritage makes up a small part of the study undertaken, its significance will be highlighted in relation to the communities who still identify with the area and retain a sense of identity to the landscape.

9.1. Concept of Cultural Landscape

Cultural landscapes can be interpreted as complex and rich extended historical records conceptualised as organisations of space, time, meaning, and communication moulded through cultural process. The connections between landscape and identity and, hence, memory are fundamental to the understanding of landscape and human sense of place. Cultural landscapes are the interface of culture and nature, tangible and intangible

heritage, and biological and cultural diversity. They represent a closely woven net of relationships, the essence of culture and people's identity. They are symbolic of the growing recognition of the fundamental links between local communities and their heritage, human kind, and its natural environment. In contemporary society, particular landscapes can be understood by taking into consideration the way in which they have been settled and modified including overall spatial organisation, settlement patterns, land uses, circulation networks, field layout, fencing, buildings, topography, vegetation, and structures. The dynamics and complex nature of cultural landscapes can be regarded as text, written and read by individuals and groups for very different purposes and with very many interpretations. The messages embedded in the landscape can be read as signs about values, beliefs, and practices from various perspectives. Most cultural landscapes are living landscapes where changes over time result in a montage effect or series of layers, each layer able to tell the human story and relationships between people and the natural processes.

The impact of human action on the landscape occurs over time so that a cultural landscape is the result of a complex history and creates the significance of place in shaping historical identities by examining a community's presence or sense of place. The deeply social nature of relationships to place has always mediated people's understanding of their environment and their movements within it, and is a process which continues to inform the construction of people's social identity today. Social and spatial relationships are dialectically interactive and interdependent. Cultural landscape reflects social relations and institutions and they shape subsequent social relations.

Cultural landscapes tell the story of people, events, and places through time, offering a sense of continuity, a sense of the stream of time. Landscapes reflect human activity and are imbued with cultural values. They combine elements of space and time, and represent political as well as social and cultural constructs. Culture shapes the landscape through day-to-day routine and these practices become traditions incorporated with a collective memory the ultimate embodiments of memorial consciousness', examples such as monuments, annual events and, archives. As they have evolved over time, and as human activity has changed, they have acquired many layers of meaning that can be analysed through archaeological, historical, geographical, and sociological study.

Indigenous people, European explorers, missionaries, pastoralists, international and domestic travellers all looked or look at similar landscapes and experience different versions of reality. Regardless of the power of different cultural groups, however, all groups create cultural landscape and interpret them from their own perspectives. This gives rise to tensions and contradictions between groups, invariably expressed in landscape forms as well.

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many interpretations. The messages embedded in the landscape can be read as signs about values, beliefs, and practices from various perspectives.

Most cultural landscapes are living landscapes where changes over time result in a montage effect or series of layers, each layer able to tell the human story and relationships between people and the natural processes. A common theme underpinning the concept of ideology of landscape itself and the setting for everything we do is that of the landscape as a repository of intangible values and human meaning that nurture our very existence. Intangible elements are the foundation of the existence of cultural landscapes, and that are still occupied by contemporary communities, Landscape, culture and collective memory of a social group are intertwined and that this binds the individuals to their community. Culture shapes their everyday life, the values bind gradually, change slowly, and transfer from generation to generation – culture is a form of memory. We see landscapes as a result of our shared system of beliefs and ideologies. In this way landscape is a cultural construct, a mirror of our memories and myths encoded with meanings which can be read and interpreted. Pivotal to the significance of cultural landscapes and the ideas of the ordinarily sacred is the realisation that it is the places, traditions, and activities of ordinary people that create a rich cultural tapestry of life, particularly through our recognition of the values people attach to their everyday places and concomitant sense of place and identity.

Living heritage means cultural expressions and practices that form a body of knowledge and provide for continuity, dynamism, and meaning of social life to generations of people as individuals, social groups, and communities. It also allows for identity and sense of belonging for people as well as an accumulation of intellectual capital current and future generation in the context of mutual respect for human, social and cultural rights.

Protection of these cultural landscapes involves some management issues such as successful conservation is based on the continuing vital link between people and their landscapes. This link can be disrupted or affected by for instance economical reasons. Other threats can also be attributed to urban expansion and development, tourism, war and looting and something beyond our human intervention: natural disasters and climate change. Cultural landscape management and conservation processes bring people together in caring for their collective identity and heritage, and provide a shared local vision within a global context. Local communities need, therefore, to be involved in every aspect of identification, planning and management of the areas as they are the most effective guardians of landscape heritage.

Most elements of living heritage are under threat of extinction due to neglect, modernisation, urbanisation, globalisation, and environmental degradation. Living heritage is at the centre of people's culture and identity, it is importance to provide space for its continued existence. Living heritage must not be seen as merely safeguarding the past, but it must be seen as safeguarding the logic of continuity of

what all communities or social groups regard as their valuable heritage, shared or exclusive.

In some instances, villages may capitalise on local landscape assets in order to promote tourism. Travel and tourism activities are built around the quest for experience, and the experience of place and landscape is a core element of that quest. It is a constant desire for new experiences that drives tourism, rather than a quest for authenticity. It is, therefore, important to engage actively with the tourism industry so that aspects of life and landscape important to cultural identity, including connection with place are maintained.

9.2. Archaeological Landscape

Although no archaeological heritage remains have been documented within the proposed development area, the area was once part of an ancient landscape inhabited by various families of genus *Homo*. Various studies recording archaeological sites and occurrences within the wider region stretching along Port Elizabeth's western coastline have reported on the evidence of the presence of *Homo erectus* (Early Stone Age), *Homo sapiens* (Middle Stone Age), and *Homo sapiens sapiens* (Later Stone Age). The only remains dating to the Early and Middle Stone Ages are stone artefacts as the organic evidence and sites have not been preserved. The influence of climatic conditions and the rising and falling of the sea levels may also attribute to much archaeological site information being lost.

The preservation of archaeological sites in the form of marine shell middens, marine shell scatters and associated cultural materials remains shows that the natural and edible resources of the area made the area an attraction over the last 10 000 years. This region would have been attractive to those hunter-gatherer communities who visited the area to harvest shellfish along the rocky coastline.

The pastoralists were driven by locating enough food to feed their domestic stock herds. The area was also attractive to later Khoekhoen pastoralists who also occupied and moved along this coastline. Their archaeological signature is evident in the remains of pottery sherds that are distributed on the dunes along the coast showing their presence on the landscape. This evidence also unlocks a potentially dynamic social landscape with possible interaction between the hunter-gathers and pastoralists.

Pre-colonial human remains are mostly unmarked and invisible on the landscape, however, in some instances, they may be marked by organised piles of stones.

9.3. Historical Landscape

The archaeological interpretation of the cultural landscape relies solely on the presence and surface visibility of artefacts left behind on the landscape by the populations who occupied and migrated through the proposed development area. A more comprehensive historical layer is able to be fitted onto the cultural landscape owing to the availability of written documents and the continuing existence of the traces left behind by European Settlers and the moulding of these traces used to shape the contemporary communities that occupies and regards itself attached to its present cultural landscape.

The proposed development area fits into a greater cultural landscape and the moulding of an historical townscape that developed into contemporary Port Elizabeth. The greater area was made up of four farms, the existing area is situated on the farm Welbedacht, Buffelsfontein (west), Papenbiesiesfontein (east), and Strandfontein (south-east) were granted during the early and mid-1800's. The dune area towards the coast has always been moving Driftsands.

Walmer's historical landscape encompassed much change over the last 200 years, yet also never losing its cultural character. Walmer has always been considered as being a demographically 'grey area' owing to the racial co-existence of the economically more "well-to-do" Whites in the suburbs and economically exploited indigenous and Black populations in the Gqebera Township. The eventual layout of Walmer was based on this continued co-existence despite several attempts to relocate members of the Gqebera Town community to the extreme outskirts of Port Elizabeth which was met with protest from both the White and Black members of the area. Walmer and Gqebera Township is very much the same today as it was historically, albeit different.

9.4. Contemporary Landscape

The contemporary cultural landscape is the product of centuries of human interaction, more so when the European Settlers entered the area. The contemporary townscape of Walmer and Gqebera Township has been shaped over the last 200 years. As previously mentioned Walmer and Gqebera Township is very much the same as it was historically, albeit different.

The similarities are vast. The demographic make-up of the Walmer suburbs are still mainly inhabited by the more "well-to-do" White people, although the more "well-to-do" Black and Coloured populations are slowly beginning to settle in the area. Gqebera Township, on the other hand, remains a popular area to migrate to as it still close to the city centre and places of employment. However, the increasing pressure and infiltration of locals from other Port Elizabeth townships and foreigners, such as Zimbabweans, Nigerians, and Somalis has put increased pressure on the townships space for occupation and ailing infrastructure. Gqebera Township is 'landlocked'. The only way to

expand the township is if the municipality decides to purchase private land around the boundaries of the township. The residents of the township continue to protest, however, not against forced removals but because of lack of service delivery and maintenance of existing infrastructure.

Traditions live on by the use of adjacent empty space and resources for the grazing of cattle.

Conditions in Gqebera giving rise to such high alcohol use and high HIV prevalence and thus presenting challenges to prevention, should be seen in the historical and political context. Gqebera is a congested township of about 65 000 to 70 000 people and is described as one of the most impoverished areas in the EC province. Diverse problems such as deep poverty; lack of education; both gender and crime related violence; unprotected sex; teenage pregnancies; and alcohol and other drug abuse, are among the factors related to and driving the HIV/AIDS epidemic in the township. Impoverished residents rely mainly on government grants and the informal sector to survive.

Despite the problems facing Gqebera Township, several projects have been established in the township that encourages the members of the community to inspire each other.

9 DESCRIPTION AND GRADING OF SITES (see Appendix B)

No archaeological, historical, or other heritage resources were identified during the survey. Dense vegetation across the proposed development area obscured surface visibility and limited the effectiveness of the field assessment.

Although, it is possible that archaeological and historical material may occur between the surface and approximately 80cm below ground, while unmarked human burials may occur up to 150cm below ground. Should any such material be uncovered during construction activities, all work in the immediate area must cease and the chance-find procedures outlined in this report must be implemented. These include securing the find, notifying the Environmental Control Officer and the relevant heritage authority, and ensuring that no further disturbance occurs until appropriate mitigation measures have been authorised.

The proposed development area forms part of a wider archaeological cultural landscape in which pre-colonial activity is difficult to read directly. No pre-colonial material was identified during the survey, and later farming, settlement expansion, landscape disturbance, climate-related erosion, and natural weathering have likely obscured or displaced earlier remains. This absence does not indicate a lack of pre-colonial occupation; instead, it highlights the need to rely on regional archaeological evidence to understand probable movement patterns, resource-use practices, and cultural dynamics within the broader Amalinda–Fort Grey–Umtiza–Buffalo Pass hinterland.

Grading of Sensitivity:

- Pre-colonial archaeological sensitivity: Low to moderate, increasing in pockets of intact vegetation, forest, and minimally disturbed terrain.
- Colonial/settler historical sensitivity: Moderate, associated with Fort Grey's defensive role, early road networks, landscape modifications, and burial evidence.
- Cultural landscape and Intangible/Living Heritage sensitivity: Moderate to high, reflecting ecological continuity, layered historical associations, and strong contemporary living-heritage values.

Management Implications:

Remaining undeveloped or ecologically intact areas warrant cautious management, with chance-find procedures recommended for all ground-disturbing activities. Planning and impact-assessment processes must consider sense-of-place, cultural memory, and landscape continuity across the broader cultural landscape.

10 ASSESSMENTS OF IMPACTS ON THE ARCHAEOLOGICAL AND CULTURAL HERITAGE RESOURCES

10.1 Archaeological Heritage Resources

Unseen archaeological heritage resources, those not visible on the surface but potentially present below ground, represent a significant risk factor within the proposed development area. These resources may include subsurface artefacts, cultural deposits, isolated finds, or buried features associated with past occupation, land-use practices, or ritual activity. Because such material cannot be identified through surface inspection alone, any intrusive development activities carry inherent potential for disturbance.

- Direct Impacts

Direct impacts may occur through excavation, trenching, foundation installation, service-line placement, or any earthmoving activity that penetrates the soil profile. These actions may inadvertently damage or destroy subsurface archaeological deposits, including artefacts, structural remains, or cultural features. The risk is elevated in areas where informal burial practices, ritual features, or historical land-use indicators have already been identified.

- Indirect Impacts

Indirect impacts include changes to soil stability, drainage, erosion patterns, and vegetation cover that may expose or degrade unseen archaeological resources over time. Construction-related vibration, compaction, or hydrological alteration may also affect fragile subsurface deposits, even if no direct excavation occurs in those areas.

- Cumulative Impacts

Cumulative impacts arise from successive phases of development that gradually reduce the integrity of the archaeological landscape. Even small-scale disturbances, when repeated across the site, may collectively result in the loss of contextual information essential for interpreting archaeological material. The presence of known heritage features (e.g., informal graves, ritual spaces, stone-packed features) increases the likelihood that additional unseen resources may be present.

- Landscape and Contextual Impacts

Unseen archaeological resources contribute to the broader cultural landscape, even when not visible. Their disturbance may weaken the interpretive value of associated heritage features, disrupt spatial relationships, and diminish the ability to understand past human activity within the area.

- Social and Cultural Impacts

If unseen archaeological resources include human remains, ritual deposits, or culturally sensitive materials, disturbance may cause significant social harm, cultural offence, or conflict with affected communities. The risk is heightened in areas where informal burial practices or ritual features have already been recorded.

- Long-Term Management Impacts

Failure to identify and manage unseen archaeological resources may result in future compliance issues, reputational risk, and the need for emergency heritage interventions during construction. Without a robust chance-find procedure, contractors may inadvertently disturb sensitive material, leading to project delays and statutory non-compliance.

10.2 Intangible / Living Heritage

Unseen or unknown living-heritage values—those not visible on the landscape but potentially present through community memory, ritual association, or customary practice—represent a significant risk factor within the proposed development area. These values may include spiritually significant spaces, informal ritual areas, ancestral connection points, or locations associated with cultural identity and social meaning. Because living heritage is often intangible and community-defined, it cannot be reliably identified through surface inspection alone. Any intrusive development activities therefore carry inherent potential for disturbing culturally sensitive spaces that are not materially visible.

- Direct Impacts

Direct impacts may occur through vegetation clearing, earthworks, excavation, trenching, access-road creation, or infrastructure installation. These actions may inadvertently disturb areas used for ritual practice, prayer, remembrance, or other culturally meaningful activities. The risk is elevated where communities have historical or ongoing associations with the landscape, even if no physical markers are present.

- Indirect Impacts

Indirect impacts include changes to landscape character, noise, dust, restricted access, or altered movement patterns that may affect how communities interact with culturally significant spaces. Construction-related vibration increased human activity, or visual intrusion may disrupt the intangible qualities of living-heritage areas, even if no direct physical disturbance occurs.

- Cumulative Impacts

Cumulative impacts arise from successive phases of development that gradually erode the cultural landscape. Repeated disturbances, increased infrastructure, and long-term land-use change may diminish the continuity of cultural practices, weaken community connections to place, and reduce opportunities for ritual or social use. The presence of known heritage features (e.g., informal burials, ritual spaces, ancestral sites) increases the likelihood that additional unseen living-heritage values may be present.

- Landscape and Contextual Impacts

Unseen living-heritage values contribute to the broader cultural landscape, even when not materially visible. Their disturbance may weaken the interpretive and symbolic value of associated heritage features, disrupt spatial relationships important to cultural practice, and diminish the ability of communities to maintain traditional or spiritual connections to the area.

- Social and Cultural Impacts

If unseen living-heritage values include ritual spaces, prayer areas, ancestral connection points, or culturally sensitive locations, disturbance may cause social harm, cultural offence, or conflict with affected communities. The risk is heightened in areas where communities maintain strong historical ties or where living-heritage practices are known to occur informally.

- Long-Term Management Impacts

Failure to identify and manage unseen living-heritage values may result in future compliance issues, reputational risk, and the need for emergency heritage interventions during construction. Without a robust chance-find procedure for living heritage, contractors may inadvertently disturb culturally sensitive spaces, leading to project delays, community dissatisfaction, and statutory non-compliance.

11 LIMITATIONS AND GAPS IN KNOWLEDGE

11.1 Literature Review

The literature review undertaken for this assessment is subject to several limitations and gaps in knowledge that constrain the completeness of the archaeological and heritage baseline. The information available for this assessment is limited to archaeological and heritage data that has been formally recorded to date. Very little systematic archaeological research has been carried out in the immediate area of the proposed development, which means that the local heritage baseline is incomplete. Only a small number of heritage or archaeological assessments have been undertaken in the wider region, providing general context but not detailed site-specific information.

Because of these gaps, some heritage resources—particularly low-visibility features, informal graves, or community-defined living-heritage spaces—may remain unrecorded. Contractors and the ECO must therefore treat the area with caution and apply the required chance-find procedures if any heritage material, human remains, or culturally sensitive features are encountered during construction.

Collectively, these limitations highlight the need for cautious interpretation, the incorporation of community-based knowledge, and the application of adaptive management strategies during development. They also underscore the importance of ongoing documentation, monitoring, and consultation to address gaps that cannot be resolved through literature alone.

11.2 Fieldwork

A full foot-survey of the entire proposed development area is ideal, especially in locations that have not been researched previously. However, fieldwork was limited by dense vegetation and restricted visibility, which meant that only disturbed or partially exposed surface areas could be inspected. Surface surveys can only identify heritage resources visible above ground; they cannot reveal the true condition, extent, or presence of subsurface archaeological material.

Although surface inspection provides essential environmental context that desktop studies cannot achieve, it remains inherently limited. Buried artefacts, informal graves, cultural deposits, and low-visibility heritage features may remain undetected. These gaps

in field coverage mean that some heritage resources may still be present even though none were observed during the survey.

Because archaeological and heritage resources are non-renewable and cannot be replaced once damaged, all contractors and the ECO must exercise caution during construction. The mitigation and chance-find procedures recommended in this report must be implemented immediately if any heritage material, bone fragments, or culturally sensitive features are uncovered during earthworks or vegetation clearing.

10 CONCLUSION

The phase 1 archaeological impact assessment (AIA) was conducted as requirement of the National Heritage Resources Act (NHRA 25 of 1999) triggered by Section 38(1)(c)(i). A literature review was conducted focusing on the archaeological literature resources available. Historical research was conducted to establish the significance of the historical settlement of the area. The survey was conducted to establish the range and importance of the exposed and *in situ* archaeological material remains, sites and features; to establish the potential impact of the development; and to make recommendations to minimise the possible damage to the archaeological heritage. The report follows the minimum standards guidelines required by the South African Heritage Resources Agency (SAHRA) and the Eastern Cape Provincial Heritage Resources Agency (ECPHRA).

Very little systematic archaeological research has been conducted within the area proposed for the low-cost housing development. Several relevant archaeological and heritage impact assessments have been conducted within the immediate vicinity and the wider region along the coastline between Kings Beach and Van Stadens River. These reports have identified several Early, Middle, and Late Stone Age stone and other artefacts distributed along the coastline as well as evidence of Khoekhoen pastoralist occupation and / or interaction by the presence of broken earthenware pot sherds. Archaeological sites such as marine shell middens and surface scatters have been reported within this 5 km archaeologically sensitive coastal zone. Historical research on Walmer and Gqebera Township points the area's unique establishment and the reason for the layout and shaping of Port Elizabeth as a city over the last 200 years.

The proposed development area is situated on the boundary of the 5 km archaeological sensitive coastal zone. No archaeological heritage remains were observed during the survey. However, the survey was limited to surface and exposed area observations and does not eliminate the possibility that archaeological heritage remains may occur below the surface. It is possible that stone artefact may occur below the dense vegetation cover between the surface and 50 – 80 cm below the ground. Ruins of buildings were encountered that should be specially assessed to determine the significance. The potential impact of the development activities on the archaeological heritage remains, sites, and features is regarded as low-medium; however, the recommendations and

mitigation measures must be taken into consideration and implemented before the commencement of the proposed development activities.

The proposed development area does not evoke the pre-colonial / archaeological cultural landscape as any archaeological heritage materials, sites or features were documented within the area. However the area falls into a greater cultural landscape that shows evidence of occupation and interactive relationships within other communities and the natural resources over a possible 1.5 million years. The colonial / historical cultural landscape describes the process of the development of Port Elizabeth as city and functional harbour port over 200 years.

11 RECOMMENDATIONS

The area is of a low pre-colonial archaeological cultural sensitivity, however, the following recommendations must be considered and implemented in accordance with the various phases of the development activities. The following recommendations and mitigation measures must be implemented prior to the commencement of the construction and during the construction activities once all of the pre-construction mitigation measures have been implemented:

1. If it is deemed necessary that the structures be demolished for the proposed development to proceed, it is recommended that a specialist historical archaeologist or historical architect be appointed to assess the significance of the built environment structures.

4. Inclusion of Living Heritage in the Public Participation Process:

It is recommended that living heritage considerations be formally included as part of the public participation process in accordance with Sections 3(2)(b) and 38(3) of the National Heritage Resources Act (NHRA, Act 25 of 1999). Public consultation must provide affected communities, traditional leaders, and knowledge holders with the opportunity to identify culturally meaningful places, ritual spaces, ancestral associations, and other forms of living heritage that was not visible during field assessment. The archaeologist must be informed of any living heritage spaces that may be identified during the public participation process. These spaces must be identified and documented together with the affected communities who have identified them. The results of the consultation must be included as part of an updated or revised report including mitigation measures for these sites and possible no-go zones.

5. Include Heritage Awareness in Contractor Induction:

Contractor teams must be briefed on heritage sensitivities, chance find procedures, and reporting requirements. Heritage awareness should form part of environmental induction and ongoing site compliance monitoring.

3. Implementation of a Chance-Find Procedure (see Appendix D):

A formal chance-find procedure must be implemented for all contractors. If human remains, grave structures, artefacts, or culturally significant features are uncovered, work must stop immediately and ECPHRA must be notified. The procedure must be included in contractor induction training.

4. Documentation and Reporting:

All heritage-related actions, including public participation, consultation, monitoring, chance-find responses, and assessments—must be documented and included in the final heritage compliance report submitted to ECPHRA.

5. Archaeological Monitoring for the Final Layout

A qualified archaeologist must conduct archaeological monitoring during the establishment of the final layout of the selected route alternative. Monitoring is required because large portions of the route alternatives were inaccessible during the field assessment due to dense and impenetrable vegetation, resulting in limited ground visibility and a heightened possibility that unseen or subsurface archaeological resources may be present. Monitoring should take place during initial vegetation clearing, earthworks, and any ground-disturbing activities associated with the final alignment.

If any archaeological, historical, burial-related, or other heritage materials are identified during monitoring, all work in the immediate area must cease, and the finds must be reported to ECPHRA for assessment and further instruction in accordance with Section 36 and Section 38 of the NHRA (Act 25 of 1999). Work may only resume once authorised by the heritage authority.

6. Management of Pre-Colonial Material and Human Remains:

If concentrations of pre-colonial archaeological heritage material, including subsurface dense artefact accumulations, associated cultural deposits, or human remains such as graves or burials—are uncovered during construction, all work must cease immediately and the discovery must be reported without delay to the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) at 043 492 1370. No further disturbance may occur until the heritage authority has provided guidance.

Should ECPHRA require further investigation, Phase 2 mitigation may be undertaken in the form of controlled test-pitting, sampling, or systematic excavation and collection of the archaeological or heritage material. The purpose of Phase 2 mitigation is to establish the contextual status, extent, and significance of the site and, where appropriate, to remove the archaeological deposit prior to the continuation of development activities. All costs associated with Phase 2 mitigation, including specialist fees, excavation, documentation, and reporting, will be the responsibility of the developer.

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14 GENERAL REMARKS AND CONDITIONS

NOTE: This report is a phase 1 archaeological impact assessment (AIA) only and does not include or exempt other required specialist assessments as part of the heritage impact assessments (HIAs).

The National Heritage Resources Act (Act No. 25 of 1999, Section 35 [Brief Legislative Requirements]) requires a full Heritage Impact Assessment (HIA) in order that all heritage resources including all places or objects of aesthetics, architectural, historic, scientific, social, spiritual, linguistic, or technological value or significance are protected. Thus any assessment should make provision for the protection of all these heritage components including archaeology, shipwrecks, battlefields, graves, and structures older than 60 years, living heritage, historical settlements, landscapes, geological sites, palaeontological sites and objects.

It must be emphasized that the conclusions and recommendations expressed in this phase 1 archaeological impact assessment (AIA) are based on the visibility of archaeological remains, features and, sites and may not reflect the true state of affairs. Many archaeological remains, features and, sites may be covered by soil and vegetation and will only be located once this has been removed. In the event of such archaeological heritage being uncovered (such as during any phase of construction activities), archaeologists or the relevant heritage authority must be informed immediately so that they can investigate the importance of the sites and excavate or collect material before it is destroyed. The onus is on the developer to ensure that this agreement is honoured in accordance with the National Heritage Resources Act No. 25 of 1999 (NHRA 25 of 1999).

Archaeological Specialist Reports (desktops and AIA's) will be assessed by the relevant heritage resources authority. The final comment/decision rests with the heritage resources authority that may confirm the recommendations in the archaeological specialist report and grant a permit or a formal letter of permission for the destruction of any cultural sites.

APPENDIX A: HERITAGE LEGISLATIVE REQUIREMENTS

Sections 3, 34, 35, 36, 38, 48, 49 and 51 of the National Heritage Resources Act 25 of 1999 apply:

S3. National estate

(1) For the purposes of this Act, those heritage resources of South Africa which are of cultural significance or other special value for the present community and for future generations must be considered part of the national estate and fall within the sphere of operations of heritage resources authorities.

(2) Without limiting the generality of subsection (1), the national estate may include –

- (a) places, buildings, structures and equipment of cultural significance;
- (b) places to which oral traditions are attached or which are associated with living heritage;
- (c) historical settlements and townscapes;
- (d) landscapes and natural features of cultural significance;
- (e) geological sites of scientific or cultural importance;
- (f) archaeological and palaeontological sites;
- (g) graves and burial grounds, including –
 - (i) ancestral graves;
 - (ii) royal graves and graves of traditional leaders;
 - (iii) graves and victims of conflict;
 - (iv) graves of individuals designated by the Minister by notice in the Gazette;
 - (v) historical graves and cemeteries; and
 - (vi) other human remains which are not covered in terms of the Human Tissue Act, 1983 (Act No. 65 of 1983);
- (h) sites of significance relating to the history of slavery in South Africa;
- (i) movable objects, including –
 - (i) objects recovered from the soil or waters of South Africa, including archaeological and palaeontological specimens;
 - (ii) objects to which oral traditions are attached or which are associated with living heritage;
 - (iii) ethnographic art and objects;
 - (iv) military objects;
 - (v) objects of decorative or fine art;
 - (vi) objects of scientific or technological interest; and
 - (vii) books, records, documents, photographic positives and negatives, graphic, film or video material or sound recordings, excluding those that are public records as defined in section 1(xiv) of the National Archives of South Africa Act (Act No. 43 of 1996).

(3) Without limiting the generality of subsections (1) and (2), a place or object is to be considered part of ¹⁹ national estate if it has cultural significance or other special value because of –

- (a) its importance in the community, or pattern of South Africa's history;
- (b) its possession of uncommon, rare or endangered aspects of South Africa's natural or cultural heritage;
- (c) its potential to yield information that will contribute to an understanding of South Africa's natural or cultural heritage;
- (d) its importance in demonstrating the principal characteristics of a particular class of South Africa's natural or cultural places or objects;
- (e) its importance in exhibiting particular aesthetic characteristics valued by a community or cultural group;
- (f) its importance in demonstrating a high degree of creative or technical achievement at a particular period;
- (g) its strong or special association with the life or work of a person, group or organisation of importance in the history of South Africa; and
- (i) sites of significance relating to the history of slavery in South Africa.

S34. Structures

- (1) No person may alter or demolish any structure or part of a structure which is older than 60 years without a permit issued by the relevant provincial heritage resources authority.
- (2) Within three months of the refusal of the provincial heritage resources authority to issue a permit, consideration must be given to the protection of the place concerned in terms of one of the formal designations provided for in Part 1 of this Chapter.
- (3) The provincial heritage resources authority may at its discretion, by notice in the Provincial Gazette, make an exemption from the requirements of subsection (1) within a defined geographical area, provided that it is satisfied that heritage resources falling into the defined area or category have been identified and adequately provided for in terms of the provisions of Part 1 of this Chapter.
- (4) Should the provincial heritage resources authority believe it to be necessary if by, following a three-month notice period published in the Provincial Gazette, withdraw or amend a notice under subsection (3).

S35. Archaeology, palaeontology and meteorites

- (1) Subject to the provisions of section 8, the protection of archaeological and palaeontological sites and material and meteorites is the responsibility of a provincial heritage resources authority: Provided that the protection of any wreck in the territorial waters and maritime cultural zone shall be the responsibility of SAHRA.
- (2) Subject to the provisions of subsection (8)(a), all archaeological objects, palaeontological material and meteorites are the property of the State. The responsible heritage authority must, on behalf of the State, at its discretion ensure that such objects are lodged with a museum or other public institution that has a collation policy acceptable to the heritage resources authority and may in doing so establish such terms and conditions as it sees fit for the conservation of such objects.
- (3) Any person who discovers archaeological or palaeontological objects or material or a meteorite in the course of development or agricultural activity must immediately report the find to the responsible heritage resources authority, or to the nearest local authority or museum, which must immediately notify such heritage resources authority.
- (4) No person may, without a permit issued by the responsible heritage resources authority—
 - (a) destroy, damage, excavate, alter, deface or otherwise disturb any archaeological or palaeontological site or any meteorite;
 - (b) destroy, damage, excavate, remove from its original position, collect or own any archaeological or palaeontological material or object or any meteorite;
 - (c) trade in, sell for private gain, export or attempt to export from the Republic any category of archaeological or palaeontological material or object, or any meteorite; or
 - (d) bring onto or use at an archaeological or palaeontological site any excavation equipment or any equipment which assist in the detection or recovery of metals or archaeological and palaeontological material or objects, or use such equipment for the recovery of meteorites.
- (5) When the responsible heritage resources authority has reasonable cause to believe that any activity or development which will destroy, damage or alter any archaeological or palaeontological site is under way, and where no application for a permit has been submitted and not heritage resources management procedure in terms of section 38 has been followed, it may –
 - (a) Serve on the owner or occupier of the site or on the person undertaking such development an order for the development to cease immediately for such period as is specified in the order;
 - (b) Carry out an investigation for the purpose of obtaining information on whether or not an archaeological or palaeontological site exists and whether mitigation is necessary;
 - (c) If mitigation is deemed by the heritage resources authority to be necessary, assist the person on whom the order has been served under paragraph (a) to apply for a permit as required in subsection (4); and
 - (d) Recover the costs of such investigation from the owner or occupier of the land on which it is believed an archaeological or palaeontological site is located or from the person proposing to undertake the development if no application for a permit is received within two weeks of the order being served.

- (5) The responsible heritage resources authority may, after consultation with the owner of the land on which archaeological or palaeontological site or a meteorite is situated, serve a notice on the owner or any other controlling authority, to prevent activities within a specified distance from such site or meteorite.
- (6)(a) Within a period of two years from the commencement of this Act, any person in possession of any archaeological or palaeontological material or object or any meteorite which was acquired other than in terms of a permit issued in terms of this Act, equivalent provincial legislation or the National Monuments Act, 1969 (Act No. 28 of 1969), must lodge with the responsible heritage resources authority lists of such objects and other information prescribed period shall be deemed to have been recovered after the date on which this Act came into effect.
- (b) Paragraph (a) does not apply to any public museum or university.
- (c) The responsible authority may at its discretion, by notice in the Gazette or the Provincial Gazette, as the case may be, exempt any institution from the requirements of paragraph (a) subject to such conditions as may be specified in the notice, and may by similar notice withdraw or amend such exemption.
- (8) and object or collection listed under subsection (7) –
 - (a) remains in the ownership of the possessor for the duration of his or her lifetime, and SAHRA must be notified who the successor is; and
- (9) must be regularly monitored in accordance with regulations by the responsible heritage authority.

S36. Burial grounds and graves

- (1) Where it is not the responsibility of any other authority, SAHRA must conserve and generally care for burial grounds and graves protected in terms of this section, and it may make such arrangements for their conservation as it sees fit.
- (2) SAHRA must identify and record the graves of victims of conflict and any other graves which it deems to be of cultural significance and may erect memorials associated with the grave referred to in subsection (1), and must maintain such memorials.
- (3)(a) No person may, without a permit issued by SAHRA or a provincial heritage resources authority—
 - (a) destroy, damage, alter, exhume or remove from its original position or otherwise disturb the grave of a victim of conflict, or any burial ground or part thereof which contains such graves;
 - (b) destroy, damage, alter, exhume, remove from its original position or otherwise disturb any grave or burial ground older than 60 years which is situated outside a formal cemetery administered by a local authority; or
 - (c) bring onto or use at a burial ground or grave referred to in paragraph (a) or (b) any excavation equipment, or any equipment which assists in the detection or recovery of metals.
- (3) SAHRA or provincial heritage resources authority may not issue a permit for the destruction or damage of any burial ground or grave referred to in subsection (3)(a) unless it is satisfied that the applicant has made satisfactory arrangements for the exhumation and re-interment of the contents of such graves, at the cost of the applicant and in accordance with any regulations made by the responsible heritage resources authority.
- (4) SAHRA or a provincial heritage resources authority may not issue a permit for any activity under subsection (3)(b) unless it is satisfied that the applicant has, in accordance with regulations made by the responsible heritage resources authority –
 - (a) Made a concerted effort to contact and consult communities and individuals who by tradition have an interest in such grave or burial ground; and
 - (b) Reached agreements with such communities and individuals regarding the future of such grave or burial ground.
- (5) Subject to the provision of any other law, any person who in the course of development or any other activity discovers the location of a grave, the existence of which was previously unknown, must immediately cease such activity and report the discovery to the responsible heritage resources authority which must, in co-operation with the South African Police Service and in accordance with regulations of the responsible heritage resources authority –

- (a) Carry out an investigation for the purpose of obtaining information on whether or not such grave is protected in terms of this Act or is of significance to any community; and
 - (b) If such grave is protected or is of significance, assist any person who or community which is the direct descendant to make arrangements for the exhumation and re-interment of the contents of such grave or, in the absence of such person or community, make any such arrangements as it deems fit.
- (6)(a) SAHRA must, over a period of five years from the commencement of this Act, submit to Minister for his or her approval lists of graves and burial grounds of persons connected with the liberation struggle and who died in exile or as a result of the action of State security forces or agent's provocateur and which, after a process of public consultation, it believes should be included among those protected under this section.
- (c) The Minister must publish such lists as he or she approved in the Gazette.
- (6) Subject to section 56(2), SAHRA has the power, with respect to the graves of victims of conflict outside the Republic, to perform any function of a provincial heritage resources authority in terms of this section.
- (7) SAHRA must assist other State Departments in identifying graves in a foreign country of victims of conflict connected with the liberation struggle and, following negotiations with the next of kin, or relevant authorities, it may re-inter the remains of that person in a prominent place in the capital of the Republic.

S.37 Public monuments and memorials

Public monuments and memorials must, without the need to publish a notice to this effect, be protected in the same manner as places which are entered in a heritage register referred to in section 30.

S38. Heritage resources management

- (1) Subject to the provisions of subsections (7), (8) and (9), any person who intends to undertake a development categorized as –
- (a) the construction of a road, wall, power line, pipeline, canal or other similar form of linear development or barrier exceeding 300 m in length;
 - (b) the construction of a bridge or similar structure exceeding 50 m in length;
 - (c) any development or other activity which will change the character of the site –
 - (i) exceeding 5 000 m² in extent, or
 - (ii) involving three or more erven or subdivisions thereof; or
 - (iii) involving three or more erven or divisions thereof which have been consolidated within the past five years; or
 - (iv) the costs of which will exceed a sum set in terms of regulations by SAHRA, or a provincial resources authority;
 - (d) the re-zoning of a site exceeding 10 000 m² in extent; or
 - (e) any other category of development provided for in regulations by SAHRA or a provincial heritage resources authority, must as the very earliest stages of initiating such a development, notify the responsible heritage resources authority and furnish it with details regarding the location, nature and extent of the proposed development.
- (2) The responsible heritage resources authority must, within 14 days of receipt of a notification in terms of subsection (1) –
- (a) if there is a reason to believe that heritage resources will be affected by such development, notify the person who intends to undertake the development to submit an impact assessment report. Such report must be compiled at the cost of the person proposing the development, by a person or persons approved by the responsible heritage resources authority with relevant qualifications and experience and professional standing in heritage resources management; or
 - (b) notify the person concerned that this section does not apply.
- (3) The responsible heritage resources authority must specify the information to be provided in a report required in terms of subsection (2)(a): Provided that the following must be included:
- (a) The identification and mapping of all heritage resources in the area affected;

- (b) An assessment of the significance of such resources in terms of the heritage assessment criteria set out in section 6(2) or prescribed under section 7;
 - (c) An assessment of the impact of development on such heritage resources;
 - (d) An evaluation of the impact of the development on heritage resources relative to the sustainable social and economic benefits to be derived from the development;
 - (e) The results of consultation with communities affected by the proposed development and other interested parties regarding the impact of the development on heritage resources;
 - (f) If heritage resources will be adversely affected by the proposed development, the consideration of alternative; and
 - (g) Plans for mitigation of any adverse effects during and after the completion of the proposed development.
- (4) The report must be considered timeously by the responsible heritage resources authority which must, after consultation with the person proposing the development, decide –
- (a) whether or not the development may proceed;
 - (b) any limitations or conditions to be applied to the development;
 - (c) what the general protections in terms of this Act apply, and what formal protections may be applied, to such heritage resources;
 - (d) whether compensatory action is required in respect of any heritage resources damaged or destroyed as a result of development; and
 - (e) whether the appointment of specialists is required as a condition of approval of the proposal.
- (5) A provincial heritage resources authority may not make any decision under subsection (4) with respect to any development with impacts on a heritage resource protected at national level unless it has consulted SAHRA.
- (6) The applicant may appeal against the decision of the provincial heritage resources authority to the MEC, who –
- (a) must consider the views of both parties; and
 - (b) may at his or her discretion –
 - (i) appoint a committee to undertake an independent review of the impact assessment report and the decision of the responsible heritage resources authority;
 - And
 - (ii) consult SAHRA; and
 - (c) must uphold, amend or overturn such decision.
- (7) The provisions of this section do not apply to a development described in subsection (1) affecting any heritage resource formally protected by SAHRA unless the authority concerned decides otherwise.
- (8) The provisions of this section do not apply to a development as described in subsection (1) if an evaluation of the impact of such development on heritage resources is required in terms of the Environment Conservation Act, 1989 (Act No. 73 of 1989), or the integrated environmental management guidelines issued by the Department of Environmental Affairs and Tourism, or the Mineral Act, 1991 (Act No. 50 of 1991), or any other legislation: Provided that the consenting authority must ensure that the evaluation fulfils the requirements of the relevant heritage resources authority in terms of subsection (3), and any comments and recommendations of the relevant heritage resources authority with regards to such development have been taken into account prior to the granting of the consent.
- (9) The provincial heritage resources authority, with the approval of the MEC, may, by the notice in the Provincial Gazette, exempt from the requirements of this section any place specified in the notice.
- (10) Any person who has complied with the decision of a provincial heritage resources authority in subsection (4) or of the MEC in terms of subsection (6) or other requirements referred to in subsection (8), must be exempted from compliance with all other protections in terms of this part, but any existing heritage agreements made in terms of section 42 continue to apply.

S48. Permits

(1) A heritage resources authority may prescribe the manner in which an application is made to it for any permit in terms of this Act and other requirements for permit applications, including –

- (a) any particulars or information to be furnished in the application and any documents, drawings, plans, photographs and fees which should accompany the application;
- (b) minimum qualifications and standards of practice required of persons making application for a permit to perform specified actions in relation to particular categories of protected heritage resources;
- (c) standards and conditions for the excavation and curation of archaeological and palaeontological objects and material and meteorites recovered by authority of a permit;
- (d) the conditions under which, bore a permit is issued, a financial deposit must be lodged and held in trust for the duration of the permit or such period as the heritage resources authority may specify, and conditions of forfeiture of such deposit;
- (e) conditions for the temporary export and return of objects under section 32 or section 35;
- (f) the submission of reports on work done under authority of a permit; and
- (g) the responsibilities of the heritage resources authority regarding monitoring of work done under authority of a permit.

(2) On application by any person in the manner prescribed under subsection (1), a heritage resources authority may in its discretion issue to such person a permit to perform such actions at such time and subject to such terms, conditions and restrictions or directions as may be specified in the permit, including a condition –

- (a) that the applicant give security in such form and such amount determined by the heritage resources authority concerned, having regard to the nature and extent of the work referred to in the permit, to ensure the satisfactory completion of such work or the curation of objects and material recovered during the course of the work; or
- (b) providing for the recycling or deposit in a materials bank of historical building materials; or
- (c) stipulating that design proposals be revised; or
- (d) regarding the qualifications and expertise required to perform those actions for which the permit is issued.

(3) A heritage resources authority may at its discretion, in respect of any heritage resource protected by it in terms of the provisions of Chapter II, by notice in the Gazette or the Provincial Gazette, as the case may be, grant an exemption from the requirement to obtain a permit from it for such activities or class of activities by such persons or class of persons in such circumstances as are specified in the notice.

S49. Appeals

(1) Regulations by the Minister and the MEC must provide for a system of appeal to the SAHRA Council for a provincial heritage resources council against a decision of a committee or other delegated representative of SAHRA or a provincial heritage resources body authority.

(2) Anybody wishing to appeal against a decision of the SAHRA Council or the council of a provincial heritage resources authority must notify the Minister or MEC in writing within 30 days. The Minister or MEC, must have due regards to –

- (a) the cultural significance of the heritage resources in question;
- (b) heritage conservation principles; and
- (c) any other relevant factor which is brought to its attention by the appellant or the heritage resources authority.

S51. Offences and penalties

(1) Notwithstanding the provisions of any other law, any person who contravenes –

- (a) sections 27(18), 29(10), 32(13) OR 32(19) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 1 of the Schedule;
- (b) sections 33(2), 35(4) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 2 of the Schedule;
- (c) sections 28(3) or 34(1) are guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 3 of the Schedule;

- (d) sections 27(22), 32(15), 35(6), or 44(3) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 4 of the Schedule;
 - (e) sections 27(23)(b), 32(17), 35(3) or 51(8) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 5 of the Schedule;
 - (f) sections 32(13), 32(16), 32(20), 35(7)(a), 44(2), 50(5) or 50(12) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 6 of the Schedule.
- (2) The Minister, with the concurrence of the relevant MEC, may prescribe a penalty of a fine or of imprisonment for a period not exceeding six months for any contravention or failure to comply with regulations by heritage resources authorities or by-laws by local authorities.
- (3) The Minister or the MEC, as the case may be, may make regulations in terms of which the magistrate of the district concerned may –
- (a) levy admission of guild fines up to a maximum amount of R10 000 for infringement of the terms of this Act for which such heritage resources authority is responsible; and
 - (b) serve a notice upon a person who is contravening a specified provision of this Act or has not complied with the terms of a permit issued by such authority, imposing a daily fine of R50 for the duration of the contravention, subject to a maximum period of 365 days.
- (4) The Minister may from time to time by regulation adjust the amounts referred to in subsection (3) in order to account for the effect of inflation.
- (5) Any person who-
- (a) fails to provide any information that is required to be given, whether or not on the request of a heritage resources authority, in terms of this Act;
 - (b) for the purpose of obtaining, whether for himself or herself or for any other person, any permit, consent or authority in terms of this Act, makes any statement or representation knowing it to be false or not knowing or believing it to be true;
 - (c) fails to comply with or perform any act contrary to the terms, conditions, restrictions or directions subject to which any permit, consent or authority has been issued to him or her in terms of this Act;
 - (d) obstructs the holder of a permit in terms of this Act in exercising a right granted to him or her by means of such a permit;
 - (e) damages, takes, or removes, or causes to be damaged, taken or removed from a place protected in terms of this Act any badge or sign erected by a heritage authority or a local authority under section 25(2)(j) or section 27(17), any interpretive display or any other property or thing.
 - (f) receives any badge, emblem or any other property or thing unlawfully taken or removed from a place protected in terms of this Act; and
 - (g) within the terms of this Act, commits or attempts to commit any other unlawful act, violates any prohibition or fails to perform any obligation imposed upon him or by its terms, or who counsels, procures, solicits or employs any other person to do so.
- shall be guilty of an offence and upon conviction shall be liable to such maximum penalties, in the form of a fine or imprisonment or both such fine and such imprisonment, as shall be specified in the regulations under subsection (3).
- (6) Any person who believes that there has been an infringement of any provision of this Act, may lay a charge with the South African Police Service or notify a heritage resources authority.
- (7) A magistrate's court shall, notwithstanding the provisions of any other law, be competent to impose any penalty under this Act.
- (8) When any person has been convicted of any contravention of this Act which has resulted in damage or to alteration of a protected heritage resource the court may –
- (a) order such person to put right the result of the act of which he or she was guilty, in the manner so specified and within such period as may be so specified, and upon failure of such person to comply with the terms of such order, order such person to pay to the heritage resources authority responsible for the protection of such resource a sum equivalent to the cost of making good; or
 - (b) when it is of the opinion that such a person is not in a position to make good damage done to a heritage resources by virtue of the offender not being the owner or occupier of a heritage resources or for any other reason, or when it is advised by the heritage resources authority responsible for the protection of such resource that it is unrealistic or undesirable to require that the results of the act be

made good, order such person to pay the heritage resources authority a sum equivalent to the cost of making good.

(9) In addition to other penalties, if the owner of a place has been convicted of an offence in terms of this Act involving the destruction of, or damage to, the place, the Minister on the advice of SAHRA or the MEC on the advice of a provincial heritage resources authority, may serve on the owner an order that no development of such place may be undertaken, except when making good the damage and maintaining the cultural value of the place, or for a period not exceeding 10 years specified in the order.

(10) Before making the order, the local authority and any person with a registered interest in the land must be given a reasonable period to make submissions on whether the order should be made and for how long.

(11) An order of no development under subsection (9) attaches to the land and is binding not only on the owner as at the date of the order, but also on any person who becomes an owner of the place while the order remains in force.

(12) The Minister on the advice of SAHRA, may reconsider an order of no development and may in writing amend or repeal such order.

(13) In any case involving vandalism, and whenever else a court deems it appropriate, community service involving conservation of heritage resources may be substituted for, or instituted in addition to, a fine or imprisonment.

(14) Where a court convicts a person of an offence in terms of this Act, it may order for forfeiture to SAHRA or the provincial heritage resources authority concerned, as the case may be, of a vehicle, craft, equipment or any other thing used or otherwise involved in the committing of the offence.

(15) A vehicle, craft, equipment or other thing forfeited under subsection (14) may be sold or otherwise disposed of as the heritage resources authority concerned deems fit.

APPENDIX B: GRADING SYSTEM

The National Heritage Resources Act 25 of 1999 stipulates the assessment criteria and grading of archaeological sites. The following categories are distinguished in Section 7 of the Act and the South African Heritage Resources Agency:

- National: This site is suggested to be considered of Grade 1 significance and should be nominated as such. Heritage resources with qualities so exceptional that they are of special national significance.
- Provincial: This site is suggested to be considered of Grade II significance and should be nominated as such. Heritage resources which, although forming part of the national estate, can be considered to have special qualities which make them significant within the context of a province or a region.
- Local: This site is suggested to be Grade IIIA significance. This site should be retained as a heritage register site (High significance) and so mitigation as part of the development process is not advised.
- Local: This site is suggested to be Grade IIIB significance. It could be mitigated and (part) retained as a heritage register site (High significance).
- 'General' Protection A (Field Rating IV A): This site should be mitigated before destruction (usually High/Medium significance).
- 'General' Protection B (Field Rating IV B): This site should be recorded before destruction (usually medium significance).
- 'General' Protection C (Field Rating IV C): This site has been sufficiently recorded (in the Phase 1). It requires no further recording before destruction (usually Low significance).

APPENDIX C: IDENTIFICATION OF ARCHAEOLOGICAL FEATURES AND MATERIAL FROM COASTAL AND INLAND AREAS: guidelines and procedures for developers

1. Stone artefacts

Stone artefacts are the most common and identifiable precolonial artefacts occurring on the South Africa landscape. Early Stone Age, Middle Stone Age and Later Stone Age stone artefacts occur in various concentrations on the South Africa landscape. Stone artefacts are very commonly found occurring on flat floodplains in a mostly secondary or disturbed context. However, stone artefacts can also be found in an *in situ* or undisturbed context in areas where little human or animal impact happens such as open sites mostly near rocky outcrops, amongst boulders and caves.

These may be difficult for the layperson to identify. However, large accumulations of flaked stones which do not appear to have been distributed naturally should be reported. If the stone tools are associated with bone remains, development should be halted immediately and archaeologists notified.



Early Stone Age (ESA) stone artefact
(1.5 million years ago – 250 000 years ago)



Middle Stone Age stone artefacts
(250 000 – 30 000 years ago)



Later Stone Age stone age artefacts and associated cultural material

Later Stone Age stone artefacts
(30 000 years ago – historical times)

2. Pottery scatters

Pottery scatters can be associated with either Khoekhoen pastoralists, the Nguni first farming communities (referred to as the South African Iron Age) or colonial settlement and can be dated to within the last 2 000 years which occur both at the coast and inland. Pottery associated with Bushmen / hunter-gatherers is generally thought to occur in the Karoo region. The most obvious difference between Khoekhoen and Nguni pottery are the decorations, shapes, sizes, and wall thickness. Khoekhoen pottery is generally thinner than the thicker walled and robust Nguni pottery. Colonial ceramics ranges from earthenware, stoneware, porcelain, and European glazed and unglazed ceramics.

Precolonial pottery and colonial ceramics are more easily identifiable by the layperson and should be reported.



Khoekhoen earthenware pottery
(last 2 000 years)



Iron Age earthenware pottery
(last 2 000 years)



Examples of 19th century European ceramics

3. Historical artefacts and features

These are easy to identify and include colonial artefacts (such as ceramics, glass, metal, etc.), foundations of buildings or other construction features and items from domestic and military activities associated with early travellers' encounters on the landscape and European settlement.



**Example of a Fortified Structure
(Fort Double Drift)**



Ruin of stone packed dwelling



Glass artefacts

4. Shell middens (marine and freshwater)

Shell middens can be defined as an accumulation of marine or freshwater shell deposited by past human populations rather than the result of natural or animal activity. Marine shell middens occur all along the coast and may extend within 5 km of the coastline. This area is generally regarded as being archaeologically sensitive. The shells are concentrated in a specific locality above the high-water mark and frequently contain various edible and sometimes inedible marine shells, stone tools, pottery, bone (fish and animal), and occasionally also human remains. Shell middens may be of various sizes and depths, but an accumulation which exceeds 1 m² in extent, should be reported to an archaeologist. Freshwater shell middens occur along river banks and comprise freshwater shell, fish and animal bone, stone tools, pottery, and sometimes human remains.



Examples of the occurrence of coastal shell middens

5. Large stone features

They come in different forms and sizes, but are easy to identify. The most common are roughly circular stone walls (mostly collapsed) and may represent stock enclosures, remains of wind breaks or cooking shelters. Others consist of large piles of stones of different sizes and heights and are known as *isisivane*. They are usually near river and mountain crossings. Their purpose and meaning are not fully understood; however, some are thought to represent burial cairns while others may have symbolic value.



Examples of stone packed features

6. Graves, Burials and Human Skeletal material

Formal historical graves are easily identifiable as they are in most cases fenced off or marked with engraved headstones. Informal stone packed graves in several instances also occur within these fenced off areas.

It is difficult to detect the presence of archaeological human remains on the landscape as these burials, in most cases, are not marked at the surface. Human remains are usually observed when they are exposed through erosion or construction activities for development. Several human remains have been rescued eroding out of the dunes along this coastline and dongas in inland areas. In some instances, packed stones or rocks may indicate the presence of informal pre-colonial burials.

Human remains, whether the complete remains of an individual buried during the past, or scattered human remains resulting from disturbance of the grave, should be reported. In general, the remains are buried in a flexed position on their sides, but are also found buried in a sitting position with a flat stone capping and developers are requested to be on the alert for this.



Exposed human remains eroding out a coastal shell midden.



Exposed human remains eroding out an inland donga

APPENDIX D: CHANCE FINDS PROTOCOL

SITES UNCOVERED DURING THE PRE-CONSTRUCTION / CONSTRUCTION / POST-CONSTRUCTION PHASES OF THE DEVELOPMENT UNDER SECTIONS 34, 35, AND 36 OF THE NATIONAL HERITAGE RESOURCES ACT (NHRA) 25 OF 1999

The Chance Finds Protocol may include but not be limited to the following:

- A heritage practitioner should be appointed to develop a heritage induction program and conduct training for the ECO, as well as team leaders, in the identification of heritage resources and artefacts.
- The project / monitoring archaeologist should be called upon if any possible heritage resources or artefacts or exposed burial are identified.
- Should an archaeological site or cultural material be discovered during construction (or operation), the area should be demarcated, and construction activities be halted.
- The project / monitoring archaeologist will then need to come out to the site and evaluate the extent and importance of the heritage resources and make the necessary recommendations for mitigating the find and impact on the heritage resource.
- The contractor therefore should have some sort of contingency plan so that operations could move elsewhere temporarily while the material and data are recovered.
- Should the heritage consultant conclude that the find is a heritage resource protected in terms of the NHRA (1999) Sections 34, 35, 37 and NHRA (1999) Regulations (Regulation 38, 39, 40), he or she should notify the relevant PHRA. In this case the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) –

Ms Lungiswa Mzazi - lungiswam@ecphra.org.za - (043) 492 1940/1/2 or 081 434 3544 /

OR

Ms Ayanda Mncwabe-Mama - Ayanda.mncwabe-mama@ecsrac.gov.za / (043) 492 1370 / 077 603 3035.

- Based on the comments received from the ECPHRA, the heritage consultant would present the relevant terms of reference to the client for implementation.
- Phase 2 mitigation in the form of test-pitting/sampling or systematic excavations and collections of the archaeological / heritage site may then be conducted to establish the contextual status of the sites and possibly remove the archaeological deposit before development activities continue. The project / monitoring / newly appointed professional archaeologist will make all the necessary permit applications to the ECPHRA. The costs for the phase 2 mitigation will be on the onus of the developer.
- Construction/Operational activities can commence as soon as the site has been cleared and signed off by the archaeologist.

Trigger / Discovery	Potential Impact	Required Action (Chance-Find Procedure)	Responsibility
Possible archaeological material (artefacts, cultural deposits, stone tools, pottery, buried features)	Disturbance or destruction of archaeological heritage	• Stop work immediately and demarcate the area. • Notify the ECO. • ECO contacts the project/monitoring archaeologist for assessment. • No handling, removal, or cleaning of material. • Await specialist recommendations and PHRA guidance.	Contractor; ECO; Archaeologist; ECPHRA
Historical structures or material (older than 60 years)	Contravention of NHRA Section 34; loss of historical significance	• Halt work and secure the area. • Notify ECO and heritage authority. • Assessment by heritage practitioner to determine Section 34 relevance.	Contractor; ECO; Heritage Practitioner; ECPHRA
Human remains or burial-related material	Severe cultural, legal, and ethical impact; contravention of Section 36	• Immediate cessation of work and secure a minimum 20 m buffer zone. • Notify ECO, SAPS, and ECPHRA. • No disturbance until formal instructions are issued. • Follow Section 36 procedures for investigation, exhumation, and re-interment.	Contractor; ECO; SAPS; ECPHRA
Living-heritage		• Stop work and secure the area. • Notify ECO. • ECO consults heritage	

indicators (ritual materials, offerings, beads, cloth, ash deposits, prayer spaces, ancestral points)	Disturbance of culturally sensitive or spiritually significant spaces	authority and, where applicable, community representatives. • No removal or handling of materials.	Contractor; ECO; ECPHRA; Community Representatives
Intangible or community-identified living-heritage spaces (ritual areas, remembrance sites, spiritual pathways)	Disruption of intangible heritage values and community-defined significance	• Halt work in the identified area. • ECO initiates consultation with heritage authority and affected communities. • Implement avoidance or culturally guided mitigation.	Contractor; ECO; ECPHRA; Community Representatives
Notification of PHRA	Ensures legal compliance with NHRA Sections 34, 35, 36	• Heritage consultant must notify ECPHRA if the find is protected under NHRA Sections 34, 35, 37 or Regulations 38–40. • Use official ECPHRA contacts listed in the document.	Heritage Consultant; ECO
Phase 2 mitigation required	Need for excavation, sampling, or recovery of material	• Conduct test-pitting, sampling, or systematic excavation as directed. • Archaeologist to obtain necessary permits from ECPHRA. • Developer bears the cost of mitigation.	Archaeologist; Developer; ECPHRA
Resumption of construction	Risk of premature disturbance	• Construction may resume only once the site has been cleared and signed off by the archaeologist.	ECO; Contractor; Archaeologist

**SECTIONS 34, 35, AND 36 OF THE NATIONAL HERITAGE RESOURCES ACT
(NHRA) 25 OF 1999 RELEVANT TO THE CHANCE FINDS PROTOCOL**

S34. Structures

- (11) No person may alter or demolish any structure or part of a structure which is older than 60 years without a permit issued by the relevant provincial heritage resources authority.
- (12) Within three months of the refusal of the provincial heritage resources authority to issue a permit, consideration must be given to the protection of the place concerned in terms of one of the formal designations provided for in Part 1 of this Chapter.
- (13) The provincial heritage resources authority may at its discretion, by notice in the Provincial Gazette, make an exemption from the requirements of subsection (1) within a defined geographical area, provided that it is satisfied that heritage resources falling into the defined area or category have been identified and adequately provided for in terms of the provisions of Part 1 of this Chapter.
- (14) Should the provincial heritage resources authority believe it to be necessary if by, following a three-month notice period published in the Provincial Gazette, withdraw or amend a notice under subsection (3).

S35. Archaeology, palaeontology and meteorites

- (6) Subject to the provisions of section 8, the protection of archaeological and palaeontological sites and material and meteorites is the responsibility of a provincial heritage resources authority: Provided that the protection of any wreck in the territorial waters and maritime cultural zone shall be the responsibility of SAHRA.
- (7) Subject to the provisions of subsection (8)(a), all archaeological objects, palaeontological material and meteorites are the property of the State. The responsible heritage authority must, on behalf of the State, at its discretion ensure that such objects are lodged with a museum or other public institution that has a collation policy acceptable to the heritage resources authority and may in doing so establish such terms and conditions as it sees fit for the conservation of such objects.
- (8) Any person who discovers archaeological or palaeontological objects or material or a meteorite in the course of development or agricultural activity must immediately report the find to the responsible heritage resources authority, or to the nearest local authority or museum, which must immediately notify such heritage resources authority.
- (9) No person may, without a permit issued by the responsible heritage resources authority—
 - (e) destroy, damage, excavate, alter, deface or otherwise disturb any archaeological or palaeontological site or any meteorite;
 - (f) destroy, damage, excavate, remove from its original position, collect or own any archaeological or palaeontological material or object or any meteorite;

- (g) trade in, sell for private gain, export or attempt to export from the Republic any category of archaeological or palaeontological material or object, or any meteorite; or
 - (h) bring onto or use at an archaeological or palaeontological site any excavation equipment or any equipment which assist in the detection or recovery of metals or archaeological and palaeontological material or objects, or use such equipment for the recovery of meteorites.
- (5) When the responsible heritage resources authority has reasonable cause to believe that any activity or development which will destroy, damage or alter any archaeological or palaeontological site is under way, and where no application for a permit has been submitted and not heritage resources management procedure in terms of section 38 has been followed, it may –
- (e) Serve on the owner or occupier of the site or on the person undertaking such development an order for the development to cease immediately for such period as is specified in the order;
 - (f) Carry out an investigation for the purpose of obtaining information on whether or not an archaeological or palaeontological site exists and whether mitigation is necessary;
 - (g) If mitigation is deemed by the heritage resources authority to be necessary, assist the person on whom the order has been served under paragraph (a) to apply for a permit as required in subsection (4); and
 - (h) Recover the costs of such investigation from the owner or occupier of the land on which it is believed an archaeological or palaeontological site is located or from the person proposing to undertake the development if no application for a permit is received within two weeks of the order being served.
- (10) The responsible heritage resources authority may, after consultation with the owner of the land on which archaeological or palaeontological site or a meteorite is situated, serve a notice on the owner or any other controlling authority, to prevent activities within a specified distance from such site or meteorite.
- (6)(a) Within a period of two years from the commencement of this Act, any person in possession of any archaeological or palaeontological material or object or any meteorite which was acquired other than in terms of a permit issued in terms of this Act, equivalent provincial legislation or the National Monuments Act, 1969 (Act No. 28 of 1969), must lodge with the responsible heritage resources authority lists of such objects and other information prescribed period shall be deemed to have been recovered after the date on which this Act came into effect.
- (b) Paragraph (a) does not apply to any public museum or university.
 - (c) The responsible authority may at its discretion, by notice in the Gazette or the Provincial Gazette, as the case may be, exempt any institution from the requirements of paragraph (a) subject to such conditions as may be specified in the notice, and may by similar notice withdraw or amend such exemption.
- (8) and object or collection listed under subsection (7) –

- (a) remains in the ownership of the possessor for the duration of his or her lifetime, and SAHRA must be notified who the successor is; and
- (9) must be regularly monitored in accordance with regulations by the responsible heritage authority.

S36. Burial grounds and graves

- (8) Where it is not the responsibility of any other authority, SAHRA must conserve and generally care for burial grounds and graves protected in terms of this section, and it may make such arrangements for their conservation as it sees fit.
- (9) SAHRA must identify and record the graves of victims of conflict and any other graves which it deems to be of cultural significance and may erect memorials associated with the grave referred to in subsection (1), and must maintain such memorials.
- (3)(a) No person may, without a permit issued by SAHRA or a provincial heritage resources authority—
 - (a) destroy, damage, alter, exhume or remove from its original position or otherwise disturb the grave of a victim of conflict, or any burial ground or part thereof which contains such graves;
 - (b) destroy, damage, alter, exhume, remove from its original position or otherwise disturb any grave or burial ground older than 60 years which is situated outside a formal cemetery administered by a local authority; or
 - (c) bring onto or use at a burial ground or grave referred to in paragraph (a) or (b) any excavation equipment, or any equipment which assists in the detection or recovery of metals.
- (10) SAHRA or provincial heritage resources authority may not issue a permit for the destruction or damage of any burial ground or grave referred to in subsection (3)(a) unless it is satisfied that the applicant has made satisfactory arrangements for the exhumation and re-interment of the contents of such graves, at the cost of the applicant and in accordance with any regulations made by the responsible heritage resources authority.
- (11) SAHRA or a provincial heritage resources authority may not issue a permit for any activity under subsection (3)(b) unless it is satisfied that the applicant has, in accordance with regulations made by the responsible heritage resources authority -
 - (c) Made a concerted effort to contact and consult communities and individuals who by tradition have an interest in such grave or burial ground; and
 - (d) Reached agreements with such communities and individuals regarding the future of such grave or burial ground.
- (12) Subject to the provision of any other law, any person who in the course of development or any other activity discovers the location of a grave, the existence of which was previously unknown, must immediately cease such activity and report the discovery to the responsible heritage resources authority which must, in co-

operation with the South African Police Service and in accordance with regulations of the responsible heritage resources authority –

- (d) Carry out an investigation for the purpose of obtaining information on whether or not such grave is protected in terms of this Act or is of significance to any community; and
 - (e) If such grave is protected or is of significance, assist any person who or community which is the direct descendant to make arrangements for the exhumation and re-interment of the contents of such grave or, in the absence of such person or community, make any such arrangements as it deems fit.
- (6)(a) SAHRA must, over a period of five years from the commencement of this Act, submit to Minister for his or her approval lists of graves and burial grounds of persons connected with the liberation struggle and who died in exile or as a result of the action of State security forces or agent's provocateur and which, after a process of public consultation, it believes should be included among those protected under this section.
- (f) The Minister must publish such lists as he or she approved in the Gazette.
- (13) Subject to section 56(2), SAHRA has the power, with respect to the graves of victims of conflict outside the Republic, to perform any function of a provincial heritage resources authority in terms of this section.
- (14) SAHRA must assist other State Departments in identifying graves in a foreign country of victims of conflict connected with the liberation struggle and, following negotiations with the next of kin, or relevant authorities, it may reinter the remains of that person in a prominent place in the capital of the Republic.

APPENDIX D: EASTERN CAPE PROVINCIAL HERITAGE RESOURCES



EASTERN CAPE
PROVINCIAL HERITAGE
RESOURCES AUTHORITY
Focusing on Uniqued Heritage in the Province

No. 17 Commissioner St.
East London CBD
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043 492 1941
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CONSTRUCTION OF WALMER HOUSING DEVELOPMENT ON ERF 11305, PORT ELIZABETH WITHIN THE NELSON MANDELA BAY MUNICIPALITY, EASTERN CAPE PROVINCE.

Enquiries: Ayanda Mncwabe-Mama
Tel: 043 492 1370
Email: ayanda.mncwabe-mama@ecsrac.gov.za
Case ID: 27700

Date: Thursday, 23 July, 2026

Interim Comment

In terms of Section 38 of the National Heritage Resources Act (Act 25 of 1999)

Sive Mlamla Abantu Environmental Services (Pty) Ltd 41 Avon Place Overbaakens Gqeberha 6070

The proposed project entails the construction of Walmer housing development, including associated facilities and infrastructure on Erf 11305 in Walmer.

ECPHRA acknowledges the submitted Archaeological Impact Assessment (Booth, 2014), Heritage Impact Assessment (Wintermeyer, B. 2015) and the Paleontological Impact Assessment (Mavuso, S. 2026).

Following review of the information provided, the paleontological report has been rejected due to geological and administrative errors. The list of amendments to be made, have been sent directly to the specialist. It was also noted that the archaeological and heritage impact assessments are outdated (2014 & 2015 respectively). ECPHRA does not accept reports older than five (5) years hence we request a site walkdown after ground clearance and a report there after. Historical maps & aerial photographs should be consulted for the impact assessments.

Only once the updated Paleontological and Archaeological reports, are resubmitted, will ECPHRA issue a formal comment in terms of **Section 38(4)** of the NHRA, on the proposed development.

Project Payments:

NID fee (R 500 paid)

HIA fee (R 1 500 unpaid)

Should you have any further queries, please contact the designated official using the case number quoted above in the case header.

Yours faithfully

IDENTIFICATION | PRESERVATION | CONSERVATION | PROTECTION | PROMOTION & MANAGEMENT
OF HERITAGE RESOURCES IN THE EASTERN CAPE



www.ecphra.org.za

AUTHORITY INTERIM COMMENT

CONSTRUCTION OF WALMER HOUSING DEVELOPMENT ON ERF 11305, PORT ELIZABETH WITHIN THE NELSON MANDELA BAY MUNICIPALITY, EASTERN CAPE PROVINCE.

Enquiries: Ayanda Mncwabe-Mama

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Ayanda Mncwabe-Mama
Archaeologist
Eastern Cape Provincial Heritage Resources Authority



**EASTERN CAPE
PROVINCIAL HERITAGE
RESOURCES AUTHORITY**
Raising our Unsettled Past into the Future



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**EASTERN CAPE
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CONSTRUCTION OF WALTER HOUSING DEVELOPMENT ON ERF 11305, PORT ELIZABETH WITHIN THE NELSON MANDELA BAY MUNICIPALITY, EASTERN CAPE PROVINCE.

Enquiries: Ayanda Mncwabe-Mama

Date: Thursday, 23 July, 2025

Tel: 043 492 1370

Email: ayanda.mncwabe-mama@ecsrac.gov.za

Case ID: 27700

2. If any heritage resources, including graves or human remains, are encountered they must be reported to ECPHRA immediately.
3. ECPHRA reserves the right to request additional information as required.

ADMIN:

Direct URL to case: <https://sahris.org.za/390399>

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